Chapter 1: First Amendment Overview

Big Picture

- **Clauses:** Establishment and Free Exercise (the Religion Clauses); Free Speech; Free Press (treated as giving the press the same rights as everyone); Assembly and Petition (overlap with speech).
- **Who is bound:** the Fourteenth Amendment incorporates the First Amendment against state and local governments (*Cantwell* for Free Exercise). Private actors are **not** bound, though many private universities adopt free-speech policies voluntarily.
- **Not absolute:** falsely shouting "Fire" in a crowded theater and fraud can be punished; religious *practice* (not belief) can collide with law (peyote, homeschooling). The Court balances First Amendment values against serious harms.
- **Theme:** "freedom to think as you will and to speak as you think." Always ask **why** the Court adopted or rejected a rule.

Whitney v. California (1927) (Brandeis, J., concurring)

Read for values, not doctrine. The majority was later overruled by Brandenburg (Ch. 4).

Facts: The casebook leaves them out on purpose, since it reads this passage for values. *Brandenburg* supplies the gist: *Whitney* sustained a conviction under California's Criminal Syndicalism Act, whose text was much like Ohio's. [Beyond casebook: Charlotte Anita Whitney was convicted for helping organize the Communist Labor Party of California, which the state said advocated violent overthrow of the government; she attended its 1919 founding convention in Oakland.]

Holding: Conviction affirmed. The majority reasoned that, without more, "advocating" violent means to effect political and economic change is so dangerous to the state that the state may outlaw it. Brandeis concurred in the result, writing the passage below. *Brandenburg* overruled the majority in 1969.

- Liberty is both an end and a means to discovering political truth.
- The remedy for evil counsels is good ones — counterspeech, not coerced silence.
- Public discussion is a political duty; an inert people is the greatest menace to freedom.
- Fear breeds repression, repression breeds hate, and hate menaces stable government.
- Speech and assembly are guaranteed against the occasional tyranny of majorities.
- **Casebook gloss:** "freedom to think" unites all the clauses — no official church dictating belief, protection of belief, and peaceful tools (speech, assembly, petition) for changing policy.

West Virginia State Board of Education v. Barnette, 319 U.S. 624 (1943)

6-3, Jackson, J. Overruled Minersville School District v. Gobitis (1940).

Rule: Government may not compel anyone to affirm a belief: "no official, high or petty, can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein."

Facts: West Virginia required public school students to salute the flag and recite the Pledge; refusal was insubordination. Jehovah's Witness children, who viewed the flag as a "graven image," were expelled and threatened with reformatories; parents were prosecuted. Attendance was compulsory.

Holding: The compelled salute and pledge violate the First Amendment.

- **Teaching vs. compelling:** the state may teach history and civics and acquaint students with the salute and its meaning; it may not compel students to *declare* a belief.
- **Speech, not religion:** the result doesn't depend on religious views or sincerity; secular objectors are equally protected.
- **Symbolic conduct** (the salute) is a form of utterance.
- **Heightened protection:** speech and worship may be restricted only to prevent "grave and immediate danger," not on a rational basis.
- **Counter-majoritarian:** fundamental rights "depend on the outcome of no elections" — rejecting *Gobitis*'s deference to legislatures.
- **Ends vs. means:** national unity may be pursued by persuasion and example, not compulsion; coerced unity "achieves only the unanimity of the graveyard."
- No competing private rights were involved — only authority vs. the individual.
- **Wartime context:** decided in 1943, during World War II. The board had first required a "stiff-arm" salute that civic groups objected to as "too much like Hitler's"; Jackson reasoned that the nation was fighting to protect exactly these freedoms.

Kennedy v. Bremerton School District, 597 U.S. 507 (2022)

6-3, Gorsuch, J.

Rule: Disciplining a public employee's private prayer because it is religious triggers strict scrutiny. The Establishment Clause is read by history and tradition (*Lemon* and the endorsement test are abandoned), and it bars **coercion** — which requires more than visible religious exercise.

Facts: A high school football coach knelt at midfield after games to pray. At the district's request he had stopped locker-room prayers and religious talks; he was disciplined for praying quietly after three October 2015 games. The district claimed it had to act to avoid coercing students (Establishment Clause).

Holding: The district violated the coach's Free Exercise rights.

- **Free Exercise:** the district admitted acting partly because the conduct was religious, so the policy was not neutral (framework in Ch. 2).
- **Clauses are complementary:** they share one sentence; the Establishment Clause doesn't automatically trump free exercise and speech.
- **No coercion:** the prayer was brief, quiet, and personal; no students joined; there was no record evidence of pressure; high schoolers can tell permission from endorsement; tolerating others' prayer is part of living in a pluralistic society. Treating any visible religious conduct by a teacher as coercive would be hostility to religion.

Dissent (Sotomayor, Breyer, Kagan): the majority misread the record — the coach had a long practice of demonstrative 50-yard-line prayers, invited others, and led students in prayer. The Court overruled *Lemon* and applied a "nearly toothless" coercion test that ignores school pressures.

Mahmoud v. Taylor, 145 S. Ct. 2332 (2025)

6-3, Alito, J. Preliminary injunction posture.

Rule: If a school policy **substantially interferes with the religious development** of a child (a *Wisconsin v. Yoder*-type burden), strict scrutiny applies **even if the policy is neutral and generally applicable**. The inquiry is fact-intensive: the specific beliefs, the nature of the curriculum, the children's **age**, and the context.

Facts: Montgomery County (MD) added five LGBTQ-inclusive storybooks to K-5 English. Teachers had to use them and were given guidance for discussion (e.g., calling a student's objection "hurtful"). The board rescinded notice and opt-outs while keeping other opt-outs, including the state-mandated sex-ed unit. Muslim, Catholic, and Orthodox parents sued.

Holding: The parents are likely to succeed; they are entitled to opt-outs.

- **Parental right:** religious education of children is protected religious exercise; it extends outside the home (*Pierce v. Society of Sisters*) and would be an "empty promise" if it stopped at the public school door.
- ***Barnette* recast** as an "especially egregious" example of direct coercion; protection isn't limited to compelled affirmation.
- **Burden:** the books are "unmistakably normative," taught by trusted teachers to young children, with correction of dissent — the same "objective danger" as *Yoder*.
- **Strict scrutiny fails:** an undisrupted classroom is a compelling interest in general, but the board's many other opt-outs undercut infeasibility, its administrability problems were of its own design, and it can't cure stigma by stigmatizing religious students.
- Private school or homeschooling is no answer — costly, and parents already fund public schools.
- **Limits the majority stressed:** the parents seek to opt out of a particular requirement, not to micromanage the curriculum; several states allow broad opt-outs without widespread problems; and the children's age is "highly relevant" (fn. 8, answering the dissent's comparison to the high schoolers in *Kennedy*).

Dissent (Sotomayor, Kagan, Jackson): mere exposure to contrary ideas is not a burden; *Barnette* protects only against compelled declaration (it let schools acquaint students with the salute and let objectors remain passive); *Kennedy* held exposure isn't coercion; *Yoder* involved the survival of a community; the rule has no limiting principle and will chill curricula and give parents a veto.

Casebook challenge: would you also grant opt-outs from a curriculum that *denigrates* LGBTQ people? Rules must apply neutrally to similar facts, whichever side wins.

Synthesis: Coercion in Kennedy vs. Mahmoud

	Kennedy	***Mahmoud***
Alleged coercer / victims	Coach praying / high school students	Teachers using the curriculum / young children (and parents)
Majority	No coercion: private, quiet prayer; older students; no evidence of pressure	Burden: normative books; young children; trusted teachers; correction; mandatory attendance

	Kennedy	*Mahmoud*
Dissent	Coercion: demonstrative prayer at a school event; history of leading players	No coercion: mere exposure; no compelled declaration
Key distinctions	Majority: age; government instruction vs. permitted private expression; normative content vs. passive observation	Dissent: a government actor's religious exercise at an official event vs. secular curriculum that only exposes

Spectrum: *Barnette* (compelled affirmation) is the clearest coercion; *Kennedy* and *Mahmoud* fight over how far below that line coercion reaches.

Stretch Exercise: Standing for the Anthem at Graduation

	Analysis
Facts	A state university requires graduates to stand for the anthem; the ceremony is optional (the diploma doesn't depend on it). A student wants to sit in protest of military policy.
Like *Barnette*	State actor; patriotic ritual; standing is a "confession by act"; political objection is protected like religious objection.
Unlike *Barnette*	Attendance is optional; the penalty is missing the ceremony, not expulsion; adults, not children; standing is less than reciting a pledge.
Likely answer	Close. Forcing a choice between a major life event and a compelled gesture still looks coercive (*Mahmoud* rejected "just go elsewhere"), and the policy gives no passive option inside the ceremony.

Chapter 2: The Religion Clauses

Free Exercise checklist. (1) Is there a sincere religious practice that the government burdens? (2) Is the law **neutral and generally applicable**? It is not if it: targets religion or is gerrymandered by exemptions (*Lukumi*); is applied with hostility (*Masterpiece*); has a discretionary exemption system (*Fulton*); treats any comparable secular activity better, judged by risk (*Tandon*); was admittedly motivated by the conduct's religious character (*Kennedy*); or excludes religious entities from a public benefit (*Carson*). (3) If neutral and generally applicable, no exemption (*Smith*) — **unless** Wrinkle 1 (parental religious education) applies. (4) Otherwise, **strict scrutiny**: an interest of the highest order, narrowly tailored, judged as to *this* exemption; the government almost always loses. (5) Wrinkle 2: government may disfavor religion only where **necessary** to avoid an Establishment Clause violation.

Employment Division v. Smith, 494 U.S. 872 (1990)

6-3, Scalia, J.

Rule: The Free Exercise Clause does not require exemptions from **neutral, generally applicable** laws that incidentally burden religion. Religious **belief** is absolutely protected; religious **conduct** is protected only from laws that target it because it is religious.

Facts: Oregon banned controlled substances, including peyote. Smith and Black, Native American Church members, used peyote in rituals and sought an exemption. **Held:** no exemption.

- Government may not regulate belief as such, compel affirmation, punish doctrines it thinks false, impose special disabilities based on religious status, or take sides in religious disputes.
- Support: *Reynolds* (polygamy), *Prince* (child labor), *Braunfeld* (Sunday closing), *Gillette* (draft).
- **Hybrid rights:** past exemptions paired free exercise with another right — speech or press, or parents' right to direct education (*Yoder*); *Barnette* is a speech case.
- Strict scrutiny for every incidental burden would create "a private right to ignore generally applicable laws" — a "constitutional anomaly."

Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520 (1993)

9-0, Kennedy, J.

Rule: A law that burdens only religiously motivated conduct — shown by exemptions that leave comparable secular conduct untouched — is not neutral or generally applicable and fails strict scrutiny.

Facts: After a Santeria church leased land, Hialeah passed emergency ordinances banning "unnecessary" or cruel animal killing, defined to exempt many secular killings. **Held:** not neutral or generally applicable; fails strict scrutiny.

- Beliefs need not be acceptable, logical, consistent, or comprehensible to others.
- **Underinclusive for animal cruelty:** fishing, home pest extermination, euthanasia, medical research, poisoning, and hunting were all allowed.
- **Underinclusive for public health:** hunters' carcasses and restaurant garbage posed the same risks but were unregulated.

- The city's claims that secular killings were "obviously justified" were *ipse dixits*; society imposed on Santeria worshippers what it would not impose on itself.

Masterpiece Cakeshop v. Colorado Civil Rights Commission, 584 U.S. 617 (2018)

7-2, Kennedy, J.

Rule: Even a neutral law must be **applied** neutrally. Official hostility to religion, or treating a religious objection worse than comparable objections, violates the Free Exercise Clause.

Facts: Baker Jack Phillips refused to make a wedding cake for a same-sex couple (2012) because of religious objections; the Commission found discrimination. **Held:** the order violated Free Exercise and was set aside.

- **Narrow:** the Court did not resolve the tension between antidiscrimination law and the First Amendment; states can generally protect gay persons' equal access to goods and services.
- **Hostility:** commissioners said Phillips could believe but not act on his beliefs in business, and called religious justification "one of the most despicable pieces of rhetoric," comparing it to defenses of slavery and the Holocaust. No one objected.
- **Disparate treatment:** three bakers who refused cakes with messages disapproving of same-sex marriage were found to have acted lawfully.
- Government can't decide what is "offensive" (citing *Barnette*).

Dissent: Ginsburg, Sotomayor.

Fulton v. City of Philadelphia, 593 U.S. 522 (2021)

9-0, Roberts, C.J.

Rule: A formal system of **discretionary, individualized exemptions** makes a policy not generally applicable, even if no exemption has ever been granted. Strict scrutiny asks whether the government has a compelling interest in denying **this** claimant an exemption.

Facts: Philadelphia stopped referring foster children to Catholic Social Services because CSS would not certify same-sex couples. **Held:** the policy was not generally applicable and failed strict scrutiny. The Court declined to overrule *Smith*.

- The Commissioner's "sole discretion" to grant exceptions invites the government to decide which reasons are worthy.
- Interests fail as to CSS: more foster parents (CSS adds them); avoiding liability (speculative); equal treatment (weighty, but undermined by the city's own exemption system).

Tandon v. Newsom, 593 U.S. 61 (2021)

5-4 per curiam, emergency application.

Rule: A regulation triggers strict scrutiny whenever it treats **any comparable secular activity** more favorably than religious exercise. Comparability is judged by **risk** to the government's interest, and the government must show the religious activity is riskier even with the same precautions.

Facts: California limited at-home gatherings (religious or secular) to three households, while salons, stores, theaters, and restaurants could exceed that. **Held:** injunction pending appeal granted.

- It doesn't matter that some secular activities are treated as badly.
- The state "cannot assume the worst when people go to worship but assume the best when people go to work."
- **Irreparable harm:** losing free exercise rights "for even minimal periods of time" is irreparable harm. This was the fifth time the Court summarily rejected the Ninth Circuit on California's COVID limits on worship.

Dissent (Kagan, Breyer, Sotomayor; Roberts separately): the right comparator is at-home secular gatherings, which were treated identically ("apples and watermelons"); the district court found homes riskier (longer social interactions, smaller and less-ventilated spaces, less masking and distancing).

Synthesis: How a Law Fails Neutrality or General Applicability

Way it fails	Case	Specifics
Gerrymandered exemptions	*Lukumi*	Animal-killing ban exempted fishing, hunting, pest control, euthanasia
Hostility in application	*Masterpiece*	Commissioners disparaged religion; comparable bakers treated better
Discretionary exemption system	*Fulton*	"Sole discretion" to waive; unused power still counts
Comparable secular activity favored	*Tandon*	Salons, stores, theaters favored over at-home worship
Admitted religious motive	*Kennedy*	Discipline partly because the prayer was religious
Exclusion from a public benefit	*Trinity Lutheran*, *Espinoza*, *Carson*	Denied solely because of religious character
Contrast: neutral and generally applicable	*Smith*	Across-the-board drug ban; no exemption

The Two Wrinkles

- **Wrinkle 1 — parental religious education:** strict scrutiny applies even to a generally applicable law that interferes with parents' religious upbringing of their children (*Yoder*; *Mahmoud*, where the sex-ed opt-out also undercut general applicability). *Smith* treated *Yoder* as resting on an unenumerated parental right; wary of such rights after *Dobbs*, the Court in *Mahmoud* said little about the doctrinal basis. ***Wisconsin v. Yoder*** **(1972) facts** (as *Mahmoud* recounts them): Wisconsin required school attendance until age 16. Amish parents refused to send their children to school after eighth grade, because high school would expose them to "worldly" influence and pull them away from the Amish community during the formative adolescent years. The Court held that applying the law to them violated their free exercise rights.
- **Wrinkle 2 — Establishment Clause avoidance:** government may disfavor religion when **necessary** to avoid an Establishment Clause violation — but not to separate church and state more strictly than the

Constitution requires (*Carson*).

The Establishment Clause and Funding

Broadly agreed: government can't establish an official religion, coerce belief, give benefits (e.g., tax exemptions) *only* to religious entities, favor one sect, or use public schools to indoctrinate (no school prayer).

Public schools are policed most strictly because they are uniquely coercive and children are impressionable: *Engel v. Vitale* (nonmandatory prayer), *Abington v. Schempp* (Bible reading), *Wallace v. Jaffree* (moment of silence for prayer), *McCollum* (religious instruction), *Edwards v. Aguillard* (special vigilance in K-12). Individual religious expression at school is still protected (*Kennedy*).

Stage	Case(s)	Rule
Old rule (repudiated)	*Lemon* era	Government could exclude religious entities from funding to avoid the appearance of support
Permitted inclusion	*Zelman* (2002)	Aid reaching religious schools through parents' genuine, independent private choice is permissible. Facts: a state let parents choose to use school vouchers for tuition at parochial or nonsectarian private schools. [Beyond casebook: Cleveland's voucher program.]
Required inclusion	*Trinity Lutheran* (2017), *Espinoza* (2020), *Carson* (2022)	If the state subsidizes private entities, it can't exclude religious ones because they're religious; it may end the program instead

- ***Trinity Lutheran Church of Columbia, Inc. v. Comer* (2017):** Missouri denied a playground-resurfacing grant to a church-run preschool solely because it was religious; excluding otherwise eligible recipients for their religious character is "odious to our Constitution."
- ***Espinoza v. Montana Department of Revenue* (2020):** Montana's no-aid provision cut religious schools out of a tax-credit scholarship program. "A State need not subsidize private education. But once a State decides to do so, it cannot disqualify some private schools solely because they are religious."
- **Unemployment benefits:** the same principle long barred states from withholding unemployment benefits from someone who lost a job for refusing to abandon the dictates of his faith (cited in *Carson*).

"Play in the joints"	Meaning	Status
Concept #1	Government may accommodate religion **beyond** what Free Exercise requires without violating the Establishment Clause	Alive (RFRA, RLUIPA, *Cutter*)
Concept #2	Government may **decline to fund** religious entities to avoid Establishment Clause concerns, even if funding would be lawful	In retreat (rejected in the trilogy)

Carson v. Makin, 596 U.S. 767 (2022)

6-3, Roberts, C.J.

Rule: Once a state chooses to subsidize private schooling, it can't exclude schools because they are religious — even when the funds pay for religious instruction. An interest in separating church and state more strictly than the federal Constitution requires is not compelling.

Facts: For families in districts without a public secondary school, Maine paid tuition at the public or approved private school of the parent's choice — but since 1981 only at "nonsectarian" schools. Two families chose accredited religious schools. **Held:** the exclusion violates Free Exercise.

- Excluding religious entities from a generally available benefit penalizes free exercise; under *Zelman*, including them wouldn't violate the Establishment Clause.
- **Not a "public education" benefit:** participating private schools can be selective, often aren't free, don't follow the state curriculum, needn't hire certified teachers, and may be single-sex.
- **Limits:** states may keep **public** schools strictly secular and need not fund private education at all.
- **Maine's options:** it could expand its public schools, add transportation, offer tutoring, remote learning, or partial attendance, or run boarding schools of its own. What it can't do is exclude religious schools from the tuition benefit it chose to offer.

Dissent (Breyer, Kagan, Sotomayor; excerpt is Sotomayor's): the Court has gone from permitting states to decline to fund religion to requiring them to fund religious instruction; play in the joints is nearly gone; Maine must fund schools with discriminatory admissions; its "choice" was forced by geography.

Open question — religious charter schools. If charter schools are public, a religious charter violates the Establishment Clause; if private, excluding religious schools violates Free Exercise. In *Oklahoma Statewide Charter School Board v. Drummond* (2025), Oklahoma argued its charters are public (state-created, funded, supervised, open to all) and the Court split 4-4 (Barrett recused), leaving in place the state ruling barring St. Isidore's certification. Expect the issue to return. Oklahoma (represented by former Solicitor General Greg Garre) argued that federal law and 45 other states also define charter schools as public and nonsectarian, so a contrary ruling would upend charter-school laws nationwide. The likely split, judging from oral argument: Thomas, Alito, Gorsuch, and Kavanaugh (private) vs. Roberts, Sotomayor, Kagan, and Jackson (public).

RFRA, RLUIPA, and Religious Symbols

Item	Rule
RFRA (1993)	Enacted in response to *Smith*: a **substantial burden** on religious exercise requires an exemption unless the government satisfies **strict scrutiny**, even for neutral laws. A statute, not constitutional law.
***City of Boerne v. Flores* (1997)**	RFRA exceeds Congress's power as to state and local governments; it still binds the federal government. [Beyond casebook: facts — a Catholic archbishop sought a permit to enlarge a church in Boerne, Texas; the city denied it under a historic-preservation ordinance, and he sued under RFRA.]

Item	Rule
RLUIPA; *Cutter v. Wilkinson* (2005)	Narrower statute (land use, institutionalized persons) binding states. Unanimously upheld: accommodation beyond Free Exercise is permissible, but courts must weigh burdens on nonbeneficiaries. Ginsburg warned that "at some point, accommodation may devolve into an unlawful fostering of religion." [Beyond casebook: facts — Ohio prison inmates who practiced nonmainstream religions, such as Wicca and Asatru, claimed the prisons failed to accommodate their religious exercise.]
***Burwell v. Hobby Lobby* (2014)**	5-4: RFRA exempted closely held for-profit corporations with religious owners from the ACA contraceptive mandate — showing accommodation's costs to third parties. Hobby Lobby alone had 10,000 employees who lost coverage; Ginsburg read her dissent from the bench.
Monuments and money	Longstanding religious displays and short legislative prayers are generally allowed on historical grounds (Texas Capitol Ten Commandments monument upheld 5-4 in 2005 — *Van Orden v. Perry*, name supplied). Public schools are stricter because students are impressionable. Circuits uphold "In God We Trust" on currency (*Newdow v. Peterson*). In *Van Orden* the monument had stood for 40 years, the challenger was a lawyer who walked past it, and the Court noted its own courtroom shows the Ten Commandments. Lower courts allow Christmas carols in school concerts when music from other traditions is included.

Stretch Exercise: World Religions Unit (Variant on Mahmoud)

	Analysis
Facts	Tenth-grade unit with short readings from the Bible, the Quran, Buddhist texts, and secular humanist writings; students compare traditions and write a reflection on meaning and morality. Some parents seek opt-outs.
Parents	*Yoder*/*Mahmoud* wrinkle applies strict scrutiny; presenting rival moral answers pressures children; the reflection nears *Barnette*-style declaration; other opt-outs defeat general applicability.
District	Older students (like *Kennedy*); descriptive, not normative; no correction or "hurtful" labels; mere exposure; neutral under *Smith*; no limiting principle otherwise.
Likely answer	District has the better case given age and descriptive content — the factors *Mahmoud* itself stressed — unless the reflection requires students to adopt views or the district grants other opt-outs.

Chapter 3: Speech Clause Overview

Big Picture

Principle	Meaning
"Speech" is broad	Words, images (books, film, websites, social media), and symbolic acts (armbands, flags, crosses, parades, picketing).
Compelled speech is almost never OK	The right to speak includes the right not to speak (commercial speech is the main exception — Ch. 8).
Content-based restrictions get strict scrutiny	Presumptively invalid; content-neutral rules are treated more leniently (Ch. 9).
False, heinous, and harmful speech is often protected	**Distrust:** officials and courts can't be trusted to separate truth from falsity or heinous ideas from unpopular ones.
Bright lines over standards	Same distrust; the Court refuses to expand the historical unprotected categories.
Worry about chilling	Fear of liability causes self-censorship; the overbreadth doctrine and mens rea requirements counter it.

Speech checklist. (1) Government action? (2) Is it speech (including symbolic conduct)? (3) Compelled speech? (4) Content-based, viewpoint-based, or content-neutral? (5) Does it fall in a historical unprotected category, defined narrowly? (6) If content-based and not unprotected, strict scrutiny: compelling interest, "actually necessary," least restrictive means (counterspeech?). (7) Facial attacks: overbreadth; vagueness (Ch. 5).

Compelled Speech

Barnette (Ch. 1): government may pursue unity by persuasion and example, not by compelling people to affirm beliefs.

Wooley v. Maynard, 430 U.S. 705 (1977)

6-3, Burger, C.J.

Rule: The state may not require a person to display its ideological message on private property for the public to see. The right to speak and the right not to speak are complementary parts of freedom of mind.

Facts: New Hampshire required "Live Free or Die" on passenger plates and made covering it a crime. The Maynards (Jehovah's Witnesses) covered it and were fined. **Held:** the requirement is unconstitutional.

- **Passive display counts:** carrying a motto is less than saluting a flag, but the difference is "one of degree"; the car becomes a "mobile billboard," and driving is a virtual necessity.
- Majority approval of the message is irrelevant.
- **Interests fail:** vehicle identification can be achieved by plate numbers (not narrowly tailored); promoting state pride and history is an ideological interest that can't outweigh the right not to be its courier.

- **Footnote 15:** "In God We Trust" on currency is distinguishable — currency is carried privately and not associated with the bearer.
- Religious plaintiffs, but a speech rationale that protects any objector.

Dissent (White, Blackmun, Rehnquist): disagreed only on whether the plate is the government's own speech (a later topic). **Note:** compelled commercial disclosures (nutrition labels, drug side effects) are allowed — Ch. 8.

Content-Based Restrictions

Collin v. Smith, 578 F.2d 1197 (7th Cir. 1978)

3-0 in relevant part, Pell, J. Cert. denied.

Rule: Government may not ban a peaceful demonstration because of its message, even one that deeply offends or traumatizes listeners. Listener-protection is allowed only for intrusions into the **home** or on a truly **captive audience**.

Facts: A Nazi party planned a 30-minute sidewalk march with uniforms, swastikas, and placards in Skokie, home to thousands of Holocaust survivors. The village passed ordinances to block it. **Held:** the ordinances are unconstitutional.

- Judges may not engage in "ideological tyranny" any more than legislators; protecting unpopular minorities distinguishes the U.S. from the Third Reich.
- Uniforms, flags, placards, and marching are symbolic speech and assembly; a peaceful demonstration near government is speech in its classic form (*Edwards v. South Carolina*).
- **Content-based, not TPM:** the village objected to *who* was marching, not time, place, or manner.
- **The permit:** 30 to 50 uniformed demonstrators marching single file on the sidewalk for about half an hour, with placards such as "Free Speech for White America," and no speeches or handbills. NSPA was represented by David Goldberger, a Jewish ACLU lawyer.
- Government has no power to restrict expression because of its content (*Mosley*); debate must be "uninhibited, robust, and wide-open" (*NYT v. Sullivan*).
- **Recognized exceptions** (Burger, C.J., concurring in *Mosley*): obscenity, fighting words, and libel (within constitutional limits), plus, in very narrow circumstances, imminent danger of a grave substantive evil (*Brandenburg*; *Terminiello*).
- **Psychic trauma** is indistinguishable from speech that stirs anger — a high purpose of speech (*Terminiello*); shock flows from the ideas themselves (*Street*).
- No captive audience: residents could avoid Village Hall for half an hour.

American Booksellers Ass'n v. Hudnut, 771 F.2d 323 (7th Cir. 1985)

3-0, Easterbrook, J.

Rule: Government may not favor one viewpoint and silence the other — even when it is right that the disfavored speech causes real social harm.

Facts: Indianapolis banned sexually explicit material depicting women as subordinate (e.g., enjoying humiliation). **Held:** unconstitutional viewpoint discrimination.

- Explicit material treating women as equals was lawful; material treating them as subordinate was banned regardless of literary, artistic, or political value.
- The court **accepted** that such depictions perpetuate subordination — but that only shows the power of speech (as with Hitler, communism, religion, television). Seditious libel is protected unless danger is grave **and imminent**.
- Otherwise government becomes "the great censor and director of which thoughts are good for us"; any rationale couldn't be limited to sex discrimination; free speech has been an ally of those seeking change.
- **Breadth of the ordinance:** the plaintiffs' materials ran from hard-core films to Yeats's "Leda and the Swan" and the works of Joyce, Lawrence, and Cleland; it was unclear how the city would treat *Ulysses* or the *Iliad*. Feminist and civil rights groups filed amicus briefs on both sides.

United States v. Stevens, 559 U.S. 460 (2010)

8-1, Roberts, C.J.

Rule: Content-based restrictions are presumptively invalid unless the speech falls within a **historically recognized** unprotected category. Courts may not create new categories by balancing the speech's value against its costs.

Facts: 18 U.S.C. § 48 criminalized commercially creating, selling, or possessing depictions of animals being intentionally "maimed, mutilated, tortured, wounded, or killed" where that conduct is illegal, with an exception for serious value. Aimed at crush videos; Stevens was convicted for dogfighting videos. **Held:** substantially overbroad and facially invalid.

- The government's "categorical balancing" test is "startling and dangerous": the First Amendment already reflects the people's cost-benefit judgment. Descriptions of unprotected speech as low-value are descriptive, not a test. There's no tradition of banning depictions of animal cruelty.
- **Overbreadth:** read by its text, the law requires no cruelty and reaches hunting videos sold where hunting is restricted; the exceptions clause doesn't cover them. Lawful applications dwarf the crush and dogfight market.
- A government promise to prosecute only "extreme" cruelty doesn't help: the First Amendment doesn't leave us "at the mercy of *noblesse oblige*."
- **Left open:** a statute limited to crush videos or extreme cruelty.

Dissent (Alito): would have read the statute narrowly.

United States v. Alvarez, 567 U.S. 709 (2012)

6-3; Kennedy, J., plurality (with Roberts, Ginsburg, Sotomayor). Breyer and Kagan concurred in the judgment (intermediate scrutiny). Alito, Scalia, Thomas dissented.

Rule: There is no general First Amendment exception for false statements. A content-based ban on lies must be "actually necessary"; the ordinary remedy for false speech is true speech.

Facts: Alvarez falsely claimed at a public meeting that he had received the Medal of Honor, violating the Stolen Valor Act; he sought no material gain. **Held:** the Act is unconstitutional.

- Cases saying falsehood has no value involved **legally cognizable harm** (defamation, fraud); this Act targeted "falsity and nothing more."

- It reached lies anywhere, even whispered at home; upholding it would let government compile a list of subjects about which lies are crimes.
- The interest in the Medal's integrity is compelling, but there was no evidence of dilution, and counterspeech worked (Alvarez was publicly exposed and ridiculed). Marketplace of ideas (Holmes, *Abrams*).
- **Plurality** = fewer than five Justices joined the reasoning, so it's usually not binding; "concurring in the judgment" = agreeing only with the result.
- **Facts and stakes:** "Lying was his habit": Alvarez also falsely claimed he had played for the Detroit Red Wings and married a starlet from Mexico. The Medal has been awarded only 3,476 times, so the interest in its integrity is "beyond question," but the Act wasn't "actually necessary" to protect it.

Historically Unprotected Categories

Category	Key case	Chapter
Incitement (intended and likely to incite imminent lawless action)	*Brandenburg v. Ohio* (1969)	4
Fighting words	*Chaplinsky v. New Hampshire* (1942)	4
Grave and imminent threat the government may prevent	*Near* (1931); *NYT Co. v. United States* (1971)	4
True threats	*Watts v. United States* (1969)	5
Speech integral to criminal conduct	*Giboney* (1949)	5
Child pornography	*New York v. Ferber* (1982)	6
Obscenity	*Miller v. California* (1973)	6
Defamation (in certain circumstances)	*NYT v. Sullivan* line	7
Fraud	*Virginia Bd. of Pharmacy* (1976)	—
Refused: depictions of animal cruelty; false statements as such	*Stevens*; *Alvarez*	3

Overbreadth and Statutory Construction

United States v. Hansen, 599 U.S. 762 (2023)

7-2, Barrett, J.

Rule: A law is facially invalid for overbreadth only if it prohibits a **substantial** amount of protected speech **relative to its plainly legitimate sweep**; the unconstitutional applications must be realistic and the ratio lopsided. Courts first construe the statute, adopting any fairly possible constitutional reading.

Facts: Hansen defrauded noncitizens with a fake "adult adoption" path to citizenship and was convicted under a law barring "encourag[ing] or induc[ing]" illegal immigration. He argued it was overbroad because it reached advocacy. **Held:** not overbroad.

- Overbreadth is unusual: it lets a litigant whose own speech is unprotected assert others' rights, and invalidates a law that has lawful applications. It is justified by chilling concerns but is "strong medicine."
- "Encourage or induce" are criminal-law terms of art covering only intentional **solicitation and facilitation** of specific unlawful acts.
- **Constitutional avoidance** (*Ashwander* principle): if a statute can fairly be read two ways, choose the constitutional reading; courts seek harmony, not "constitutional collision." The canon doesn't override clear text.

Dissent: Jackson, Sotomayor. **Ordinary facial challenge** (contrast): show no valid applications (*Salerno*).

	Stevens	***Hansen***
Construction	Ordinary meaning; no cruelty requirement	Terms of art: solicitation and facilitation
Protected applications	Hunting videos — realistic and numerous	Advocacy excluded; remaining concerns fanciful
Result	Lopsided ratio: facially invalid	No lopsided ratio: upheld

Stretch Exercise: Ban on Sales of Actual Illegal Dogfight Videos

	Analysis
Threshold	Videos are speech (*Stevens*), and the ban turns on subject matter, so it's content-based and presumptively invalid.
Defense	Unlike § 48, it's narrow — the question *Stevens* left open. It fits an **existing** category (speech integral to crime): like *Ferber*, the market drives the crime. Alternatively, it survives strict scrutiny by targeting the commercial incentive; read narrowly (*Hansen*).
Challenge	*Stevens* refused to make cruelty depictions unprotected; *Ferber* rests on harm to children. "Illegal" where? (*Stevens*'s Japan footage.) It sweeps in journalism and exposés. Less restrictive alternative: prosecute the fights (*Alvarez*).
Likely answer	Defensible if narrowly drafted and tied to the underlying crime. [Beyond casebook: Congress's 2010 crush-video law was limited to **obscene** videos, tying it to an existing category.]

Chapter 4: Speech That May Cause Violence or Harm National Security

Type of rule	Example	Scrutiny
Content-based	"Speeches about sports teams are prohibited"	Strict
Viewpoint-based (worst form)	Banning pro-legalization publications; rejecting a "FCANCER" vanity plate while allowing vanity plates (survivor won, 2024)	Strict
Content-neutral (time, place, manner)	"No blasting speeches 10pm-6am"	Intermediate (Ch. 9)

Unprotected categories are exceptions to the ban on content-based rules. This chapter covers three, all defined **very narrowly** by Justices across the spectrum. **Every case here rejected** the argument that the speech was unprotected — know why (see the synthesis table).

Reading tip: start with the **challenged law** and how it was construed, then the facts. *Terminiello*'s facts sounded like incitement, but the jury instruction swept in protected speech.

Incitement

Terminiello v. City of Chicago, 337 U.S. 1 (1949)

5-4, Douglas, J.

Rule: Speech may not be punished for stirring anger, inviting dispute, or creating unrest; it must pose a clear and present danger of a serious evil far above public inconvenience or annoyance.

Facts: A suspended priest's hate-filled speech to a packed auditorium risked violence with protesters outside. The jury was told "breach of the peace" included speech that "stirs the public to anger, invites dispute, brings about a condition of unrest, or creates a disturbance." **Held:** conviction reversed.

- Speech may best serve its purpose when it induces unrest or stirs people to anger; the alternative is standardized ideas.
- **Dissent** (Vinson, Frankfurter, Jackson, Burton): only that counsel failed to object to the instruction.

Brandenburg v. Ohio, 395 U.S. 444 (1969)

9-0 per curiam. Overruled Whitney v. California (1927).

Rule: Advocacy of force or law violation may be punished only if it is (1) **directed to** inciting or producing (2) **imminent** (3) **lawless action** and (4) is **likely** to produce it.

Facts: A KKK leader invited a reporter to film a farm rally: hooded figures, some armed, burned a cross; he warned of possible "revengeance" against the government and announced a march on Congress. Only Klan members and journalists were present. He was convicted under Ohio's criminal syndicalism law, which punished advocating violence and assembling to advocate it. **Held:** the statute is unconstitutional.

- Abstract teaching of the moral propriety or even necessity of force differs from "preparing a group for violent action and steeling it to such action."
- Ohio's law punished **mere advocacy**, with no intent, imminence, or likelihood requirement.
- **Concurrences:** Black and Douglas would expressly reject the "clear and present danger" test, which was used to affirm WWI dissidents' convictions (*Abrams*, *Schaefer*, *Pierce*). Douglas quotes Holmes in *Gitlow*: "Every idea is an incitement."

Era	Case(s)	Standard
1919-27	*Abrams*, *Schaefer*, *Pierce*, *Whitney*	Clear and present danger / bad tendency used to punish dissident advocacy
1949-51	*Terminiello*; *Dennis*	Clear and present danger of serious evil
1969-now	*Brandenburg*	Intent + imminence + likelihood (replaced the older test in practice)

Fighting Words, Hostile Audiences, and Hate Speech

- **Fighting words (*Chaplinsky*):** personal insults so offensive they're likely to provoke the listener to attack the speaker **immediately**. The Court hasn't upheld a restriction on this theory since 1942. [Beyond casebook: *Chaplinsky*'s facts — Walter Chaplinsky, a Jehovah's Witness distributing literature on a public street in Rochester, New Hampshire, called a city marshal "a God damned racketeer" and "a damned Fascist." The Court upheld his conviction under a state law against offensive words addressed to others in public.]
- ***Cohen v. California* (1971):** a "Fuck the Draft" jacket in a courthouse hallway was not fighting words — no one present could reasonably see a **direct personal insult**, and there was no realistic prospect of violence. (Profanity point in Ch. 6.)
- **No heckler's veto (*Cox v. Louisiana*, 1965; *Edwards v. South Carolina*, 1963):** peaceful civil rights protesters can't be convicted because a hostile crowd might become violent when police can control it.
- **Police could control the crowd:** in *Cox*, a hostile crowd of 100 to 300 was separated from the student protesters by 75 to 80 armed police; in *Edwards*, police protection "was at all times sufficient," and the City Manager admitted he could have brought more officers if needed.
- **Hate speech** is generally protected. In *Collin* (Ch. 3), the village conceded it expected no violence, taking the case outside both *Brandenburg* and *Chaplinsky*.

R.A.V. v. City of St. Paul, 505 U.S. 377 (1992)

9-0 on the judgment, Scalia, J.

Rule: Government may ban an entire unprotected category because of what makes it proscribable, but it may not single out a **subset** based on topic or viewpoint.

Facts: Teenagers burned a cross in a Black family's fenced yard. St. Paul's ordinance banned symbols arousing anger "on the basis of race, color, creed, religion or gender," construed to reach only fighting words. **Held:** facially unconstitutional.

- Unprotected categories are not "invisible to the Constitution" — e.g., government may ban libel, but not only libel critical of the government.

- The ordinance was underinclusive: it didn't reach fighting words based on political affiliation, union membership, or sexual orientation.

Harvard note (1993, by coauthor Klein): *Chaplinsky* should be overruled rather than expanded — it rewards the undesirable response of fighting (unlike fleeing a false "Fire!") and gives police discretion to punish minorities and critics.

- **The critique the note answers:** scholars faulted *Chaplinsky* for assuming a white male "fight" response; women and outnumbered minorities may flee or submit instead. Prof. Kathleen Sullivan would extend the doctrine to words that cause "fright or flight" (otherwise there is "more license to insult Mother Teresa than Sean Penn"). The note's answer: abolish the doctrine rather than expand it.

Prior Restraints and National Security

Prior restraint checklist. Is the government stopping speech **before** it occurs (an injunction or licensing), rather than punishing it afterward? If so, the restraint carries a **heavy presumption** of invalidity and the government bears a **heavy burden**. The only recognized exception is *Near*'s wartime dictum (troop locations, transport sailing dates), which the Court has never actually applied.

Near v. Minnesota ex rel. Olson, 283 U.S. 697 (1931)

Prior restraint on a newspaper.

Rule: A **prior restraint** on publication is presumptively unconstitutional. The protection "is not absolutely unlimited," but the limitation has been recognized "only in exceptional cases."

Facts: Under a state statute allowing "suppression of the offending newspaper or periodical," Minnesota courts enjoined *The Saturday Press* and its owner, J.M. Near, from continuing to publish articles that criticized local law enforcement as corrupt and inefficient. **Held:** reversed — the Framers especially opposed prior restraints. **Dictum:** protection isn't absolute; in wartime the government might prevent publication of troop numbers and locations or transport sailing dates.

New York Times Co. v. United States, 403 U.S. 713 (1971) (Pentagon Papers)

6-3 per curiam. Don't confuse with NYT v. Sullivan (defamation).

Rule: A prior restraint comes with a heavy presumption against validity (*Bantam Books*; *Near*); a general claim of harm to national security did not carry the government's heavy burden.

Facts: Daniel Ellsberg leaked a classified Vietnam War study showing the government knew the war likely couldn't be won and misled the public. The Nixon Administration sought to enjoin the *Times* and *Post*; publication was restrained for 15 days. **Held:** injunctions denied.

- **Black (with Douglas):** every moment of restraint was a flagrant violation; the press serves the governed, not the governors; "security" is a vague generality that can't override the First Amendment.
- **Timeline:** the *Times* published June 13, 1971; a temporary restraining order followed June 15; the Second Circuit enjoined the *Times* while the D.C. courts refused to enjoin the *Post*. The Court granted cert on June 25 (staying publication), heard argument June 26, and ruled June 30.
- **Dissent (Burger, Harlan, Blackmun):** the issues were hard and the decision too rushed.

- **The briefs:** the government argued a "real likelihood" of grave danger suffices and the President is best placed to judge it. The ACLU argued restraints should be limited to tactical military operations, weapons designs, and codes — and never for information bearing on public policy decisions. The government also argued that *Near*'s examples were merely illustrative and that punishment after publication would be meaningless, since the harm would already be done. The ACLU's test had two parts: the information must fall in one of those narrow categories **and** must not bear on public debate. Even plans like the Bay of Pigs would stay protected (JFK later told the *Times* that more coverage "would have saved us from a colossal mistake"). It added that 12 of the 19 federal judges who had reviewed the papers rejected the government's harm claims.
- **Why prior restraints are worse** (Thomas Emerson, quoted by the ACLU): they bring a wider range of expression under scrutiny, shut off speech before it happens, are imposed "by a stroke of the pen" without the safeguards of criminal process, allow less public criticism, and drive toward excess.
- **Aftermath:** the Court has never upheld such a restraint. *Marchetti* and *Snepp* rested on CIA secrecy agreements (in *Snepp* the book's proceeds went to the government, and the Court never decided whether publication could be enjoined); *The Progressive* (H-bomb article) was enjoined but abandoned before appeal.

Synthesis: Why Each Unprotected-Category Argument Failed

Case	Category	Why it failed
Terminiello	Incitement	Law reached speech that merely angered; no imminence
Brandenburg	Incitement	Punished mere advocacy; no intent, imminence, or likelihood
Cohen	Fighting words	No direct personal insult; no realistic violence
Cox, Edwards	Hostile audience	Police could control the crowd
Collin	Incitement; fighting words	Village conceded no expected violence
R.A.V.	Fighting words (assumed)	Banned only a topic-based subset
***Near*; Pentagon Papers**	National security	Heavy presumption not overcome

Stretch Exercise: The Courthouse Livestream

	Analysis
Facts	An activist livestreams outside a courthouse: "we need to shut this courthouse down today." Viewers push barricades; the activist adds, "I'm not telling anyone to hurt anybody. But history remembers people who act." Ten minutes later a group breaks through and damages the entrance.
Government	Imminence ("today," crowd at the target, ten minutes); a concrete call to action; urging escalation after seeing the pushing supports intent; likelihood shown by an agitated crowd already pressing forward.

	Analysis
Activist	Core criticism of government; "shut it down" is common, conditional protest rhetoric; explicit disclaimer of violence; much of the audience was online; punishing speakers for volatile listeners risks a heckler's-veto effect.
Likely answer	Close; turns on **intent**. The post-pushing statement is the government's best evidence, and a properly instructed jury could convict. [Beyond casebook: *Hess v. Indiana* (1973) and *NAACP v. Claiborne Hardware* (1982) support the activist on imminence and intent.]

Chapter 5: True Threats and Speech Integral to Crime

Theme — mens rea as speech protection. The Court often forbids penalizing speech unless the speaker had a culpable mental state. This gives honest speakers "breathing room" at the cost of letting some unprotected speech go unpunished. *Brandenburg* requires **intent**; *Counterman* requires at least **recklessness**; *Williams* requires belief and intent.

True Threats

Counterman v. Colorado, 600 U.S. 66 (2023)

7-2 on the judgment, Kagan, J.

Rule: A **true threat** is a serious expression conveying that the speaker means to commit unlawful violence, judged by how a reasonable recipient would understand it. The First Amendment also requires proof that the speaker was at least **reckless** — consciously disregarding a substantial and unjustifiable risk that the words would be viewed as threatening.

Facts: Counterman sent hundreds of Facebook messages over two years to a musician he'd never met, creating new accounts when blocked; some suggested surveillance or harm ("Die."). She feared for her life and canceled performances. He was convicted under a stalking law applying a purely objective test. **Held:** vacated and remanded.

- "True" excludes jests and hyperbole ("I'll kill you if you leave dirty dishes in the sink").
- **Why a subjective element:** speakers unsure of the line, fearful of error or litigation costs, will self-censor protected speech.
- **Why recklessness** (not purpose or knowledge): it balances chilling against the real harms of threats; reckless speakers consciously accept a substantial risk of serious harm.
- **The statute:** Colorado's stalking law barred repeated communications made "in a manner that would cause a reasonable person to suffer serious emotional distress" and that did so; the only evidence was his messages.
- **Barrett's guardrails:** true threats are already narrow. The speaker must express an intent to commit unlawful violence against a particular person or group, judged by a reasonable listener who knows the whole context (tone, audience, medium, the broader exchange). Sotomayor added that online speech lacks contextual clues and that racial and cultural stereotypes can shape what a jury sees as dangerous.

Opinion	Standard	Core reason
Majority (Kagan, Roberts, Alito, Kavanaugh, Jackson)	Recklessness	Balances chilling against harm to victims
Concurrence (Sotomayor; Gorsuch in part)	Intent	Online speech lacks context; juries' norms and stereotypes vary; incitement (the closest cousin) requires intent

Opinion	Standard	Core reason
Dissent (Barrett, Thomas)	Objective only	Other categories use objective tests; the category is already narrow and context-sensitive; let legislatures calibrate

Speech Integral to Crime

Unprotected whether written or spoken: speech that **is** the crime ("Your money or your life"), **offers** or **solicits** illegal acts ("I'll sell you heroin"; "I want to hire a prostitute"), or **helps** commit or conceal one ("I'll tell you when the coast is clear" — conspiracy, aiding and abetting). **Abstract advocacy** of illegality ("cocaine should be legal") stays protected. Hard cases: general-audience how-to material (novels are protected; bomb manuals?).

United States v. Williams, 553 U.S. 285 (2008)

7-2, Scalia, J.

Rule: Offers to provide and requests to obtain contraband are categorically unprotected (*Giboney*; *Pittsburgh Press*). A law is void for vagueness only if it fails to give fair notice or invites seriously discriminatory enforcement — not merely because close cases exist.

Facts: A federal law criminalized pandering or soliciting child pornography — offers or requests concerning material the defendant believes (or intends another to believe) is child pornography. **Held:** constitutional and not vague.

- Solicitation, conspiracy, and incitement laws have always criminalized speech intended to induce crime; such offers have no social value.
- "Promotes" doesn't reach "child pornography should be legal" or even "I encourage you to obtain it"; it means recommending a **particular** item **with intent to initiate a transfer** (distinguishing abstract advocacy — *Brandenburg*; *Claiborne Hardware*).
- **Vagueness** comes from the Due Process Clause. It concerns indeterminacy about **what** fact must be proved ("annoying," "indecent"), not difficulty proving it; that is handled by the reasonable-doubt standard. Belief and intent are true-or-false facts.
- **Vagueness standard:** a law is void if it fails to give a person of ordinary intelligence fair notice of what is prohibited, or is so standardless that it invites seriously discriminatory enforcement. In First Amendment cases the Court relaxes the rule that someone whose own conduct is clearly covered can't complain of vagueness as to others. Still, "perfect clarity" has never been required.
- **Dissent (Souter, Ginsburg):** statute-specific; no dispute that speech integral to crime is unprotected.

	Vagueness	Overbreadth
Complaint	Law is **unclear**	Law reaches **too much** protected speech
Source	Due Process	First Amendment
Whose speech	Mainly the litigant's own (*Holder v. Humanitarian Law Project* — casebook says "Rights")	Third parties' (*Stevens*, *Hansen*)

	Vagueness	Overbreadth
Shared goal	Prevent chilling	Prevent chilling

Rice v. Paladin Enterprises, Inc., 128 F.3d 233 (4th Cir. 1997)

3-0, Luttig, J.

Rule: Speech — even publishing — that aids and abets a crime is unprotected where the publisher **intended** to assist criminals and the material was used exactly as intended.

Facts: Paladin published *Hit Man*, a detailed manual for contract killers; Perry used it to murder three people. Paladin **stipulated** that it intended to assist murderers and knew the book would be used "upon receipt" for murder. **Held:** the First Amendment doesn't bar the victims' families' aiding-and-abetting suit.

- Copycat cases differ: readers **misuse** novels and films; publishers don't intend to assist crime.
- Evidence of intent will almost never exist apart from stipulations like these.
- News reporting is never a basis for liability.
- Not all manuals: the stipulations, detailed instructions, exhortation to murder, and lack of any legitimate purpose made the case unique.
- **More stipulations:** Perry also followed another Paladin book, *How to Make a Disposable Silencer*, and Paladin stipulated that it assisted Perry in these very murders. Major networks, newspapers, and publishers filed as amici warning that "no expression" would be safe; the court said copycat cases involve misuse, not use "precisely as intended."

Stretch Exercise: A Bomb Manual Without Stipulations

	Analysis
For prosecution	Aiding and abetting is speech integral to crime; publishers aren't exempt (*Paladin*); operational know-how, not ideas; catastrophic harm.
Against	No extrinsic intent evidence; legitimate audiences (engineers, researchers, journalists, novelists); general publication isn't a one-to-one offer like *Williams*; *Stevens* bars creating categories by balancing.
What the government should prove	**Specific intent** to facilitate a crime (as in *Brandenburg*, not *Counterman*'s recklessness), evidence beyond the text itself, actual use in a crime, and narrow construction (*Hansen*). [Beyond casebook: 18 U.S.C. § 842(p) takes this intent-based approach.]

Garcia v. Character Technologies, Inc., 785 F. Supp. 3d 1157 (M.D. Fla. 2025)

Conway, J. Preliminary ruling.

Rule: A distributor may assert its users' right to receive speech, but output counts as speech only if it is **expressive**; the court was not prepared to hold that chatbot output is speech.

Facts: In the first wrongful-death suit against an AI chatbot company, a 14-year-old (Sewell Setzer III; the casebook spells it "Seltzer") died by suicide after heavy use of Character.AI. The complaint alleges an anthropomorphized, manipulative design marketed to children. **Held (preliminary):** First Amendment

dismissal denied.

- Relying on Barrett's *Moody v. NetChoice* concurrence: an algorithm carrying out a human's expressive choice may be speech; when owners "hand the reins" to an LLM, it's unclear any person made an expressive choice.
- **Why the companies relied on users' rights:** claiming the output as the company's own expression would mean owning its words and the liability for them, would admit deliberate design (like *Paladin*'s stipulations, helping prove intent), and would reinforce the product-design framing. [Beyond casebook: it would also undercut Section 230 immunity for third-party content.]
- **The allegations:** chatbot characters sent romantic messages and urged him to stay "loyal"; when he expressed suicidal thoughts, the system steered back to the subject instead of activating safeguards; he died immediately after a character told him to "come home." The company allegedly worked in partnership with Google.
- **Weak analogies:** the defendants compared the characters to non-player characters in video games and to other users on social media, both of which get First Amendment protection, but the court found they "do not meaningfully advance" those analogies.

Casebook study tips. Learn case names as shorthand for doctrines: "under *Chaplinsky*," "the *Brandenburg* rule," "*Giboney* and its progeny," "under *Counterman*." Know the most recent case on each doctrine, since the Court refines and sometimes overrules its earlier cases. In practice, cite **binding** precedent: your circuit and the Supreme Court in federal court, or the state's high and appellate courts in state court. Other decisions are only **persuasive** authority. Failing to cite binding precedent can be a professional-responsibility violation.

Chapter 6: Immoral Speech

Categories: obscenity, sexually explicit speech, child pornography, profanity, and violent imagery. "Indecent" describes speech regarded as immoral but not obscene. What unites them: the government seeks to suppress the speech for reasons of morality.

Immoral speech checklist. (1) Did the Court treat the speech as an **unprotected category** (rational basis only)? (2) If disputed, how did it define the category's **boundaries** (e.g., *Miller*; "obscene for kids")? (3) If protected, what **standard of review** applied (content-based usually means strict scrutiny)? (4) What was the **bottom line, and why**? Then ask the two overarching questions: **Who** is the government protecting, adults or kids? And what **harm** is targeted, harm from the content itself or an indirect harm, such as exploitation of real children?

Governing Principles

- **Adults:** the government almost never can restrict immoral speech to protect adults from its content. The exception is obscenity, narrowly defined. Offended adults are expected to look away, walk away, or toss out the mail.
- **Kids:** the government sometimes can protect kids, especially from sexually explicit speech — but it can't block adult access, and kids have their own First Amendment rights (*Brown*).
- **Secondary effects:** local governments may zone adult businesses to reduce crime and lower property values (*Renton*).
- **Child pornography** made with actual children may be banned to dry up the market for abuse (*Ferber*) — not virtual images or adult look-alikes (*Free Speech Coalition*). But offers to buy or sell material believed to involve real children may be punished (*Williams*).

Who Are We Protecting: Adults or Kids?

Bolger v. Youngs Drug Products Corp., 463 U.S. 60 (1983)

9-0 on the bottom line, Marshall, J.

Rule: The government can't shield adults from immoral content (except obscenity). It can shield kids from some content, but only if the restriction doesn't stop adults from getting it. The government "may not reduce the adult population to reading only what is fit for children."

Facts: A federal law banned mailing unsolicited contraceptive ads to homes. **Held:** the ban violates the First Amendment.

- **Shielding adults from offense** "carries little weight." Outside obscenity, offensiveness doesn't justify suppression; recipients aren't a captive audience, and "the short, though regular, journey from mail box to trash can is an acceptable burden" (citing *Cohen*).
- **Helping parents** is "undoubtedly substantial," but the ban fails: parents already control their mail, and the ban purges material "entirely suitable for adults."
- *Butler v. Michigan*: such a ban would "burn the house to roast the pig"; mailbox discourse can't be limited to "that which would be suitable for a sandbox."

- *Pacifica* distinguished as narrow: broadcasting is "uniquely pervasive" and "uniquely accessible to children."

Cohen v. California, 403 U.S. 15 (1971)

5-4, Harlan, J. (Fighting-words point in Ch. 4.)

Rule: The presence of unwilling viewers doesn't automatically justify suppressing offensive speech; they can "avoid further bombardment of their sensibilities simply by averting their eyes."

Facts: Cohen wore a jacket reading "Fuck the Draft" in a Los Angeles courthouse corridor where women and children were present, to show the depth of his feelings about the Vietnam War. He was convicted of disturbing the peace by offensive conduct (30 days). **Held:** reversed; the speech was protected.

FCC v. Pacifica Foundation, 438 U.S. 726 (1978)

5-4 on the bottom line; Stevens, J., plurality.

Rule: The government may regulate a broadcast that is **indecent but not obscene**, because broadcasting is uniquely accessible to children. The holding is **narrow** and rests on a nuisance rationale in which context is all-important.

Facts: A radio station aired George Carlin's "Filthy Words" monologue at 2 p.m. A father driving with his young son complained. The FCC issued a declaratory order finding the broadcast indecent, without formal sanctions. **Held:** the FCC's action was upheld.

- **Why broadcasting is special:** children have access to radios, often unsupervised; radios are in the home, where privacy gets extra deference; unconsenting adults may tune in without warning; and spectrum is scarce and licensed in the public interest.
- **The FCC's approach:** it found authority in 18 U.S.C. § 1464 ("obscene, indecent, or profane language" by radio) and used a nuisance model that **channels** rather than bans. A valuable broadcast preceded by warnings might be acceptable late at night but not when children are listening. Pacifica had warned listeners and aired the monologue during a program on attitudes toward language.
- Cohen's written message might have been incomprehensible to a first grader, but the broadcast "could have enlarged a child's vocabulary in an instant."
- **Nuisance:** time of day, program content, and medium matter. A nuisance may be "a pig in the parlor instead of the barnyard."
- **Not decided:** two-way radio, an occasional expletive, or criminal prosecution. *Pacifica* returns in Ch. 9 (time, place, and manner).

Takeaway from *Cohen* and *Pacifica*: profanity is protected speech. Calling speech "indecent" or "profane" generally doesn't mean it can be restricted (*Cohen*; the FCANCER plate, Ch. 4, a district court case). *Pacifica* is the unusual, narrow exception.

Protecting Adults: Obscenity and Secondary Effects

Rule: Obscenity is unprotected. Under *Miller v. California* (1973), still good law, speech is obscene only if **all three** are met: (a) the average person, applying contemporary community standards, would find the work, taken as a whole, appeals to the **prurient interest**; (b) it depicts or describes, in a **patently offensive** way, sexual conduct specifically defined by state law; and (c) the work, taken as a whole, lacks **serious literary, artistic, political, or scientific value**.

***Miller v. California* facts:** [Beyond casebook; the casebook states the test, quoted in *Hudnut*, but doesn't excerpt the case.] Marvin Miller ran a mass-mailing campaign advertising "adult" books and a film. His unsolicited brochures, with explicit pictures, were opened by a restaurant manager and his mother in Newport Beach, California, who complained to the police. He was convicted under California's obscenity law. **Held:** vacated and remanded under the new three-part test, which replaced the earlier "utterly without redeeming social value" standard and allowed local, rather than national, community standards.

- **The challenge:** defining obscenity without sweeping in valuable sexually explicit works. Before *Miller*, Justice Stewart said, "I know it when I see it" (*Jacobellis*, 1964), and the Court's "movie days" gave lower courts little guidance. Justices Black and Douglas skipped the movie days because they thought obscenity is protected speech (Bob Woodward, *The Brethren*).
- **Prurient interest** means "a shameful or morbid interest in nudity, sex, or excretion," not a normal interest in sex (*Brockett v. Spokane Arcades*, 1985).
- **Prong (c) matters most:** it protects works that, as a whole, have value, even if isolated scenes might seem obscene.
- Because obscenity is defined so narrowly, much deeply offensive speech is protected — and the casebook agrees it's more dangerous to let government go down that path.
- Some Justices continued to dissent that the *Miller* test is imprecise and chills protected speech, but it remains good law, with no serious chance of being overruled.

***Hudnut* revisited** (full case in Ch. 3): the Indianapolis ordinance didn't track *Miller* — no prurient interest, no offensiveness, no community standards, no work-as-a-whole inquiry, and value was irrelevant. Its drafters saw those omissions as virtues; the court saw viewpoint discrimination. Drafter Catharine MacKinnon asked, "if a woman is subjected, why should it matter that the work has other value?"

Renton v. Playtime Theatres, Inc., 475 U.S. 41 (1986) — Secondary Effects

Described in the casebook.

Rule: Zoning laws that confine adult businesses get **intermediate** scrutiny, even though partly content-based, because they target **secondary effects** (crime, property values), not the message.

Facts: The casebook describes the setting generally: cities use zoning to keep adult establishments, such as strip clubs and adult bookstores, out of residential and mainstream commercial areas, often concentrating them in one area. [Beyond casebook: Renton, Washington, barred adult movie theaters within 1,000 feet of any residential zone, dwelling, church, or park, and within one mile of any school. Playtime Theatres bought two theaters to show adult films and challenged the ordinance. The Court noted that more than 520 acres, over 5% of the city, stayed open to adult theaters.] **Held:** upheld under intermediate scrutiny, because the ordinance aimed at secondary effects (higher crime, lower property values) rather than the message.

The doctrine is narrow: the Court has refused to extend it beyond adult entertainment establishments.

Protecting Kids: Child Pornography

New York v. Ferber, 458 U.S. 747 (1982)

Unanimous on the bottom line, White, J.

Rule: Child pornography made with real children is **unprotected**, even if not obscene under *Miller*, because distribution is intrinsically related to the sexual abuse of the children used to make it.

Facts: New York criminalized distributing material depicting sexual performances by children under 16, without requiring obscenity. **Held:** upheld.

- Preventing sexual exploitation and abuse of children is an objective of "surpassing importance."
- *Ferber* was the Court's first look at a statute limited to sexual depictions of children. The federal government and 47 states had laws aimed at production, and at least half of them didn't require obscenity; *Miller* had been an accommodation between protecting unwilling recipients and the dangers of censorship.
- **Two links to abuse:** the materials are a permanent record, and circulation worsens the harm; and the distribution network must be closed to control production.
- Production is clandestine, but marketing needs a visible apparatus, so drying up the market may be the only practical method of enforcement.
- The value of such material is "exceedingly modest, if not de minimis."
- **Casebook note:** the rationale resembles secondary effects — the harm is indirect (abuse of real children in production), not caused by the message.

Ashcroft v. Free Speech Coalition, 535 U.S. 234 (2002)

6-3, Kennedy, J. Thomas concurred in the judgment; O'Connor concurred in part and dissented in part; Rehnquist and Scalia dissented.

Rule: *Ferber* does not extend to sexually explicit images made **without real children** (computer-generated images or adults who look like minors).

Facts: The Child Pornography Prevention Act of 1996 (CPPA) banned sexually explicit images that "appear to" depict minors. **Held:** the extension violates the First Amendment.

- It goes beyond *Ferber*, whose rationale depended on protecting real children exploited in production.
- It bans speech regardless of serious value. Teen sexuality and child abuse are enduring themes in art — Juliet is 13 in *Romeo and Juliet*.
- "Appear to be under 18" is higher than many states' ages for marriage and consent.
- One explicit scene would trigger punishment without inquiry into value, but "the artistic merit of a work does not depend on the presence of a single explicit scene."
- *Ferber* itself relied on virtual images as a permissible alternative; the CPPA criminalized that alternative.

***United States v. Williams* revisited** (Ch. 5): offers and requests for child pornography are speech integral to crime. The tricky part: the law covered material the buyer or seller **believed** depicted a real child. The Court held such offers may be punished even if the belief is mistaken, stressing that technology makes it nearly impossible to prove which images involve real children.

Protecting Kids: Age-Gating

Ashcroft v. ACLU, 542 U.S. 656 (2004) ("*Ashcroft II*")

5-4, Kennedy, J. Rehnquist, O'Connor, Scalia, and Breyer dissented.

Rule: Under **strict scrutiny**, a content-based law that suppresses a large amount of speech adults have a right to receive is invalid if **less restrictive alternatives** would be at least as effective; the government must prove they are not.

Facts: The Child Online Protection Act (COPA) criminalized posting material "harmful to minors" online for commercial purposes, with an affirmative defense for age verification (e.g., a credit card). **Held:** likely unconstitutional.

- **Filters are less restrictive:** they restrict at the receiving end, not the source; adults needn't identify themselves; and no speech is criminalized, so chilling is diminished.
- **Filters may be more effective:** they block foreign sites, can't be evaded by minors with credit cards, and cover email.
- Filters are imperfect, but the government offered no specific evidence that COPA would work better.

Free Speech Coalition v. Paxton, 145 S. Ct. 2291 (2025)

6-3, Thomas, J. Kagan, Sotomayor, and Jackson dissented.

Rule: A law requiring age verification to keep minors from speech that is **obscene as to them** gets **intermediate scrutiny**, because its burden on adults is incidental. Texas's law satisfies it.

Facts: Texas H.B. 1181 requires commercial websites publishing sexually explicit content to verify visitors' ages. **Held:** constitutional.

- **Two traditional powers:** states may ban speech obscene to the public at large, and may prevent children from accessing speech that is **obscene to children** (the *Miller* test adjusted for minors; *Ginsberg v. New York*, 1968). *Ginsberg* upheld a ban on selling minors sexual material that would be obscene from a child's perspective.
- **Why intermediate scrutiny:** any burden on adults is "only an incidental effect on protected speech" (*Boy Scouts v. Dale*).
- **Earlier cases distinguished:** *Reno v. ACLU* (1997) applied strict scrutiny because the Communications Decency Act operated as a ban on adult speech; its age-verification defense was illusory given the technology. The internet has changed dramatically since *Reno* and *Ashcroft II* (smartphones, streaming).
- **Rational basis rejected:** it applies only when no fundamental rights are implicated; adults have a real, if incidentally burdened, right. Intermediate scrutiny is "deferential but not toothless."
- **The test:** a law survives intermediate scrutiny if it advances **important** governmental interests unrelated to the suppression of free speech and does not burden **substantially more speech than necessary**. Texas and the Fifth Circuit had argued for rational basis.
- **Applied:** the interest in shielding children from sexual content is "important, even compelling." The law adapts traditional in-person age checks to the digital age, using government ID or transactional data — methods used for online gambling, alcohol, tobacco, car rentals, and by the pornography industry itself. Less restrictive alternatives (filters, ISP blocking) don't defeat a legitimate legislative choice under

intermediate scrutiny. Privacy is protected by the incentives of sites and verifiers, and stigma has never exempted the industry from regulation.

Question to consider: did *Paxton* effectively overrule *Ashcroft II*? The filtering alternative that won in 2004 lost in 2025 because of the lower standard of review. The Court framed the earlier cases as involving effective bans on adult access.

Protecting Kids: Violent Imagery

Brown v. Entertainment Merchants Association, 564 U.S. 786 (2011)

7-2, Scalia, J. Alito (with Roberts) concurred; Thomas and Breyer dissented.

Rule: Violent imagery is **protected**; there is no new unprotected category for violence, even for minors. A content-based ban on selling violent video games to minors gets **strict scrutiny**, and California's fails.

Facts: California banned selling or renting "violent video games" to minors. **Held:** unconstitutional.

- **Video games are speech:** they communicate ideas through characters, dialogue, plot, music, and interaction; it is "difficult to distinguish politics from entertainment, and dangerous to try."
- **No new category** (following *Stevens*): legislatures can't add categories by balancing value against social costs — a "startling and dangerous" proposition. Obscenity covers only depictions of **sexual conduct**, not violence.
- ***Ginsberg* distinguished:** it adjusted an existing category (obscenity) for minors; California sought a wholly new category for children only.
- **Minors' rights:** minors are entitled to a significant measure of First Amendment protection; there is no "free-floating power to restrict the ideas to which children may be exposed."
- **No tradition:** Grimm's fairy tales, the *Odyssey*, Dante's *Inferno*, and *Lord of the Flies* are full of gore. Past panics targeted dime novels, movies, radio, comics, television, and music.
- **Interactivity** isn't new (choose-your-own-adventure books); it differs in degree, not kind. Judge Posner: all literature is interactive.
- **Strict scrutiny fails:** no causation (the research shows correlation, suffers methodological flaws, and finds minuscule effects); wildly **underinclusive** (similar effects from Bugs Bunny cartoons, E-rated games, even pictures of guns), which alone defeats the law; and the industry's rating system already helps parents, so filling the "modest gap" isn't compelling.
- **The evidence:** California conceded it couldn't show a direct causal link. Its main expert, Dr. Craig Anderson, relied on studies that every court to consider them had rejected; he admitted the effects were "about the same" as those of violence on television.

Synthesis: Standards and Outcomes

Case	Speech	Protecting	Standard	Result
***Cohen* (1971)**	Profanity	Adults	Protected	Conviction reversed

Case	Speech	Protecting	Standard	Result
***Pacifica* (1978)**	Indecent broadcast	Kids	Narrow broadcast / nuisance rationale	FCC upheld
***Bolger* (1983)**	Contraceptive ads	Adults and kids	Protected; interests insufficient	Ban struck
***Miller* (1973)**	Obscenity	Adults	Unprotected (three-part test)	Test defined
***Hudnut* (1985)**	"Degrading" explicit material	Adults	Viewpoint discrimination	Struck
***Renton* (1986)**	Adult business zoning	Communities	Intermediate (secondary effects)	Upheld
***Ferber* (1982)**	Child porn with real children	Real children	Unprotected	Upheld
***Free Speech Coalition* (2002)**	Virtual child porn	Kids	Protected	Struck
***Williams* (2008)**	Offers and requests for child porn	Real children	Speech integral to crime	Upheld
***Ashcroft II* (2004)**	Online material harmful to minors	Kids	Strict	Struck (filters)
***Paxton* (2025)**	Online age verification	Kids	Intermediate	Upheld
***Brown* (2011)**	Violent video games	Kids	Strict	Struck

Stretch Exercise: Teen Sexting

	Analysis
Issue	Should consensual teen sexting be treated as unprotected child pornography? Such images often fit statutory definitions; some states reduce penalties for teens, many don't, federal law draws no distinction, and prosecutors have discretion.
Questions	Does *Ferber*'s rationale (drying up a market that exploits children) fit a 15-year-old sending her own image to a partner? If not, may the government regulate it at all? Should the partner's age matter (15, 17, 18, 25)? What if a 15-year-old partner forwards the image to others ("revenge porn")?
Analysis	*Ferber*'s market-and-exploitation rationale fits poorly for a self-made image shared consensually with a peer. Its other harm — a permanent record whose circulation worsens the injury — fits forwarding well. A sensible rule would turn on exploitation: an adult partner or nonconsensual redistribution looks like *Ferber*; consensual exchange between peers does not.

Chapter 7: Torts Involving Speech

Big picture: state law defines the elements of a tort, but when speech is an element, especially the central one, the First Amendment limits how a state may define it. The Court's rules are a compromise: let victims of speech-based torts recover in some circumstances without chilling too much protected speech, especially criticism of government officials. Torts covered: fraud, defamation, intentional infliction of emotional distress (IIED), invasion of privacy, and appropriation of likeness or intellectual property.

Speech-tort checklist. (1) Is the question about **Torts**, the **First Amendment overlay**, or both (bar tip)? (2) Who is the **plaintiff**: public official, public figure, or private person? (3) Is the speech on a matter of **public or private concern**? (4) What **mens rea** does the First Amendment require (knowledge, recklessness/"actual malice," negligence)? (5) What **damages** are sought: actual, presumed, or punitive? (6) For true information: was it obtained **lawfully**, and is it of public concern? The same conduct can be both a tort and a crime; the First Amendment principles are typically the same.

Fraud

Rule: Fraud is an **unprotected category** of speech. Common law requires a false statement of **material** fact, made **knowing** it was false, with **intent to mislead**, usually to obtain money or property. Those demanding mens rea elements greatly reduce the risk of chilling protected speech.

- **Why unprotected:** (1) history: fraud has been unprotected since 1791 (the *Alvarez* list); (2) the demanding common-law elements. A mere false statement is not enough.
- ***Hansen* (Ch. 3)** is fraud: he sold a sham "adult adoption" path to citizenship for $4,500 each, luring 450+ noncitizens and nearly $2 million. "The First Amendment does not shield fraud."
- ***Alvarez* (Ch. 3)** is not fraud: his lie about the Medal of Honor was "a pathetic attempt to gain respect," not made to secure employment or financial benefits.

Defamation

Defamation is a traditional tort for injury to reputation. **Libel** is written; **slander** is spoken ("s" for spoken). Before 1964 the First Amendment put no limits on it: the plaintiff showed the defendant said something bad about him, truth was a defense the defendant had to prove, and damages were **presumed**. The First Amendment rules now vary along two axes: (a) is the plaintiff a **public official/public figure** or an ordinary person, and (b) is the statement on a matter of **public or private concern**?

Four questions to answer from the cases. (1) Why protect false statements of fact at all? (2) Why make it harder for public officials and public figures to sue? (3) Why make it harder when the statement involves a matter of public concern? (4) Are the lines convincing?

New York Times v. Sullivan, 376 U.S. 254 (1964)

9-0 on the bottom line, Brennan, J. Black, Douglas, and Goldberg would have given absolute immunity to critics of public officials.

Rule: A **public official** can't recover damages for a defamatory falsehood relating to his official conduct unless he proves **"actual malice"**: the statement was made "with **knowledge that it was false** or with **reckless disregard** of whether it was false or not." Recklessness is enough; "malice" here does not mean ill will.

Facts: In 1960 the *Times* ran a full-page ad by supporters of Martin Luther King Jr. criticizing Montgomery, Alabama police's treatment of civil rights protesters. It had factual errors (how many times King had been arrested, which song protesters sang). Police commissioner L. B. Sullivan sued and won $500,000 under Alabama's easy-to-prove libel law. **Held:** reversed.

- **Breathing space:** "erroneous statement is inevitable in free debate," and it must be protected if freedom of expression is to have the "breathing space" it needs to survive.
- **Truth defense isn't enough:** requiring critics to guarantee the truth of every assertion, on pain of unlimited judgments, leads to **self-censorship**. Critics would "steer far wider of the unlawful zone," even when what they say is true, out of doubt it can be proved or fear of the expense.
- **The press:** the rule is especially important to the press, which roots out and reports on corrupt or inefficient officials, but the press gets no greater First Amendment rights than individuals.
- Don't confuse this *New York Times* case with the Pentagon Papers case (Ch. 4).

Curtis Publishing Co. v. Butts, 388 U.S. 130 (1967)

Plurality. Described in the casebook commentary and slides; not excerpted.

Rule: The *Sullivan* actual-malice standard extends to **public figures**, not just public officials.

Facts: A magazine accused Wally Butts, former University of Georgia football coach, of conspiring with Alabama's coach to fix games. Butts couldn't recover without showing actual malice.

Gertz v. Robert Welch, Inc., 418 U.S. 323 (1974)

5-4, Powell, J. Burger, Douglas, Brennan, and White dissented.

Rule: When a **private person** sues over a statement on a matter of **public concern**, states may set their own standard of liability so long as they don't impose **liability without fault** (at least **negligence**). But **presumed or punitive damages** require **actual malice**.

Facts: The casebook omits the complicated facts. The key point: the plaintiff was an ordinary private person, but the false statement involved an issue of public concern.

- **"No such thing as a false idea":** opinions are corrected by competing ideas, not judges and juries. But false statements of fact have **no constitutional value**; "neither the intentional lie nor the careless error" advances debate.
- **Strategic protection:** because error is inevitable and strict liability causes "intolerable self-censorship," the First Amendment "requires that we protect some falsehood in order to protect speech that matters."
- **Why private plaintiffs get more protection:** (1) **self-help**: public officials and figures have greater access to the media to rebut lies, so private people are more vulnerable; (2) **normative**: public officials and figures voluntarily exposed themselves to scrutiny; a private person "has relinquished no part of his interest in the protection of his own good name," so he is more deserving of recovery.

- **Public figures:** some are public figures for all purposes (persuasive power and influence); more commonly, people become public figures by thrusting themselves to the forefront of particular public controversies. Truly involuntary public figures are "exceedingly rare."
- **Damages:** juries' "largely uncontrolled discretion" to award presumed or punitive damages where there is no loss compounds the chilling effect.

Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc., 472 U.S. 749 (1985)

5-4; Powell, J., plurality (with O'Connor and Rehnquist). Burger and White concurred in the judgment; Brennan, Marshall, Blackmun, and Stevens dissented.

Rule: When a **private** plaintiff sues over a statement on a matter of **purely private concern**, **presumed and punitive damages** may be awarded **without actual malice**. Open question, still undecided 40 years later: may a state impose **strict liability**, or does the First Amendment require at least negligence?

Facts: A credit reporting company issued false credit reports about a construction contractor to the contractor's creditors. **Held:** presumed and punitive damages allowed.

- **Balancing:** the state's interest in compensating private reputational injury is the same as in *Gertz*, but the First Amendment interest is weaker. Speech on matters of **public concern** is at the heart of the First Amendment; purely private speech poses no threat to debate on self-government and no risk of press self-censorship. It is "not totally unprotected," but its protections are less stringent.
- **White, J., concurring in the judgment:** he had joined *Sullivan* but came to think it struck an "improvident balance." Under it "the lie will stand": the defeated official gets no judgment identifying the falsehood, and the public stays misinformed. He would have kept the common-law liability standard and instead **capped damages**, so a defamed official could at least get a judgment vindicating his reputation.

Berisha v. Lawson, 141 S. Ct. 2424 (2021) (denying cert.)

Gorsuch, J., dissenting from denial of certiorari (Thomas, J., also dissented separately).

Point: *Sullivan*'s actual-malice standard remains good law, and there is no sign a majority wants to revisit it. But Justices Thomas and Gorsuch have urged the Court to reconsider it.

- **Founding view:** freedom of the press meant no prior restraints, not freedom to defame without consequence. Publishers had a duty to try to get the facts right or answer in tort, the accepted view for over two centuries until 1964.
- **Changed media landscape:** in 1964 a handful of large, fact-checked print and broadcast outlets dominated; today virtually anyone can publish virtually anything instantly. Disinformation is cheap and profitable, while the economic model supporting reporters and fact-checkers has eroded.
- What began as tolerating occasional falsehood has become "an ironclad subsidy for the publication of falsehoods by means and on a scale previously unimaginable."
- **Discussion prompt:** would you keep, replace, or abolish the actual-malice standard? The casebook points to President Trump's $20 billion defamation suit against the *Wall Street Journal* over statements linking him to Jeffrey Epstein.

Intentional Infliction of Emotional Distress

IIED is a relatively new, more controversial tort that not all states recognize. It typically requires that the defendant **intentionally or recklessly** caused the plaintiff **severe emotional distress** through **extreme and outrageous** conduct. The Court has extended its defamation principles to IIED claims based on speech.

Hustler Magazine v. Falwell, 485 U.S. 46 (1988)

8-0, Rehnquist, C.J. (Kennedy, J., recused).

Rule: Public figures and public officials may not recover for IIED based on a publication unless it contains a **false statement of fact** made with **actual malice**. "Outrageousness" is too subjective a standard to satisfy the First Amendment.

Facts: *Hustler* ran a parody ad portraying Jerry Falwell, a nationally known minister and political commentator, in a drunken incestuous encounter with his mother in an outhouse. Falwell won an IIED verdict. **Held:** reversed. The ad was obviously a parody and couldn't reasonably be read as stating actual facts.

- Otherwise, political cartoonists and satirists would face damages without any showing that their work falsely defamed its subject.
- The ad was "at best a distant cousin" of political cartoons, but there is no principled standard to separate them. "Outrageousness" has "an inherent subjectiveness" that lets juries impose liability based on their tastes, views, or dislike of the expression.

Snyder v. Phelps, 562 U.S. 443 (2011)

8-1, Roberts, C.J. Alito, J., dissented.

Rule: Speech on a **matter of public concern**, in a **public place**, is entitled to "special protection" and can't be the basis for IIED liability just because a jury finds it **outrageous**. The focus is the **content** of the speech (public concern), not the plaintiff's identity (here, a private person).

Facts: Fred Phelps and Westboro Baptist Church members picketed near the funeral of a soldier killed in Iraq, with signs saying God kills American soldiers to punish the nation's tolerance of homosexuality. The soldier's father won millions on an IIED claim. **Held:** reversed.

- **Public concern:** judged by all the circumstances. The signs addressed the political and moral conduct of the United States, homosexuality in the military, and Catholic clergy scandals, even if they fell "short of refined social or political commentary."
- **Where and how:** they picketed peacefully on public land next to a public street, about 1,000 feet away and out of sight of the church, under police supervision, with no shouting, profanity, or violence, and didn't disrupt the funeral. The distress came from the **content and viewpoint** of the message: parishioners holding "God Bless America" signs at the same spot wouldn't have been liable.
- "If there is a bedrock principle," the government may not prohibit an idea because society finds it offensive. In public debate we must tolerate "insulting, and even outrageous, speech" to give the First Amendment "breathing space."

Counterman Revisited: Borrowing From Defamation

Counterman v. Colorado (2023) (full case in Ch. 5) held that a true-threats prosecution requires at least **recklessness** as to whether the communication would be seen as threatening. Justice Kagan borrowed directly from *Sullivan* and *Gertz*: a subjective mental-state requirement is "strategic protection" against the chilling effect. It shields some proscribable speech, but by reducing an honest speaker's fear of accidental liability it gives "breathing room" to valuable speech. The First Amendment "requires that we protect some falsehood in order to protect speech that matters."

Disclosing Information That Is True

Rule: Truthful information is protected speech. The Court is quite protective of disclosures, at least where the speaker **obtained the information lawfully**.

- ***Florida Star v. B.J.F.* (1989), 6-3:** a damages award against a newspaper for publishing a rape victim's name violated the First Amendment. The paper got the name lawfully from a publicly released police report. Applying **strict scrutiny**, the state lacked a compelling interest in preventing disclosure in those circumstances.
- ***Bartnicki v. Vopper* (2001), 6-3:** a media organization couldn't be held liable for broadcasting a tape of phone calls that a **third party** had illegally intercepted. Privacy is important but was outweighed by the right to publish truthful information on a **matter of public concern**.
- **Revenge porn (state courts):** the Supreme Court hasn't decided it. In *Nebraska v. Zitterkopf* (Neb. 2024), the defendant secretly recorded a sexual encounter and shared an image. Applying strict scrutiny, the court upheld the law: the state has a compelling interest in personal privacy, and the law is narrowly tailored even without an intent-to-harass element, because the harm from distributing intimate images is the same whatever the motive.

Appropriation of Likeness or Intellectual Property

IP law is complicated and not covered in depth. Know only that federal and state laws can significantly protect intellectual property without violating the First Amendment, though there are limits.

Zacchini v. Scripps-Howard Broadcasting Co., 433 U.S. 562 (1977)

5-4, White, J. Powell, Brennan, Marshall, and Stevens dissented.

Rule: The First Amendment does not immunize the media from a state **right-of-publicity** claim when they broadcast a performer's **entire act** without consent.

Facts: Hugo Zacchini performed a 15-second "human cannonball" act at an Ohio county fair. He asked a freelance reporter not to film it; the next day, on the producer's instructions, the reporter taped the entire act, which aired on the 11 o'clock news with favorable commentary. **Held:** Zacchini's damages suit may proceed.

- Earlier cases involved reporting on events, not broadcasting an entire act a performer is normally paid for. It is like broadcasting a copyrighted play, a prize fight, or a ball game without permission.
- Broadcasting the whole act threatens its economic value. Like patent and copyright, the right of publicity gives an **incentive** to invest in a performance. Zacchini didn't seek to stop the broadcast; "he simply wants to be paid for it."

- Ohio may choose to privilege the press here, but the First Amendment doesn't require it.

Synthesis: Defamation and IIED Rules

Plaintiff / speech	Case	Liability standard	Presumed / punitive damages
Public official	*NYT v. Sullivan* (1964)	Actual malice	Actual malice
Public figure	*Curtis Publishing v. Butts* (1967)	Actual malice	Actual malice
Private person, public concern	*Gertz* (1974)	At least negligence (no liability without fault)	Actual malice required
Private person, private concern	*Dun & Bradstreet* (1985) (plurality)	Open: negligence or strict liability?	No actual malice needed
IIED, public figure/official	*Hustler v. Falwell* (1988)	False statement of fact + actual malice	Same
IIED, speech on public concern in public place	*Snyder v. Phelps* (2011)	"Outrageousness" not enough	Same

Stretch Exercise: The AI Campaign Video

	Analysis
Issue	A mayor vetoes a living-wage ordinance. Her opponent's campaign ad uses AI to create a realistic video of her saying, "I do not care whether working families can afford rent," with a small caption: "Dramatization based on the mayor's living-wage veto." Many viewers miss the caption and think it's real. She sues for defamation.
Questions	Is the video a statement of fact, opinion, parody, or something in between? Does the disclaimer matter? Does the political context make the speech more protected or more harmful? How does actual malice apply when the defendant knowingly fabricated the image but believed it captured the "truth" of the veto?
Analysis	The mayor is a public official and the speech concerns her official conduct, so *Sullivan* requires actual malice. Unlike *Hustler*'s obviously absurd parody, a realistic video can reasonably be understood as stating an actual fact (that she said those words), and an easily missed disclaimer may not change that. The defendant knew the quotation was fabricated, which points toward knowledge of falsity, though he will argue the gist (her veto) was true and the video was rhetorical characterization. The political context cuts both ways: it is core speech that needs breathing space, but fabricated quotations in a campaign are the falsehoods *Gertz* says have no constitutional value.

Chapter 8: Commercial Speech

What it is: speech used to try to sell stuff (goods or services): iPhones, sneakers, a haircut, legal services. Speakers are typically for-profit businesses, but nonprofits can engage in it (a nonprofit hospital advertising its specialty services). **Charitable solicitations** (fundraising) are **not** commercial speech. Because of the money involved, commercial speech is litigated far more often than obscenity or true threats.

Big picture: the Court lets governments **restrict** commercial speech more easily than other speech (*Central Hudson*, intermediate scrutiny), and **compel** commercial disclosures more easily still (*Zauderer*). That's why drug packaging carries health warnings and food carries nutrition labels.

Commercial speech checklist. (1) Is it **commercial speech**? (2) Is the government **restricting** speech or **compelling** a disclosure? (3) Restriction: run ***Central Hudson***. Is the speech misleading or about illegal activity (unprotected)? If protected: substantial interest? directly advances? not more extensive than necessary? Watch for **paternalism** toward adults (fails) versus kids (may work, if tailored). (4) Compelled disclosure: run ***Zauderer***. Purely factual and uncontroversial information about the seller's own product or service? reasonably related to a substantial interest? not unjustified or unduly burdensome? If *Zauderer* doesn't apply (*NIFLA*), use heightened scrutiny.

Restrictions on Commercial Speech

Virginia Pharmacy Board v. Virginia Citizens Consumer Council, 425 U.S. 748 (1976)

8-1, Blackmun, J. Rehnquist, J., dissented.

Rule: For the first time, **commercial speech is protected** by the First Amendment. A state may not completely suppress truthful information about entirely lawful activity because it fears the information's effect on speakers and listeners. Commercial speech can still be regulated (false or misleading ads, illegal transactions, time/place/manner rules).

Facts: Virginia made it "unprofessional conduct," punishable by fines and loss of license, for a pharmacist to advertise prescription drug prices. A resident who took daily prescription drugs and two nonprofits challenged the law. **Held:** unconstitutional.

- **Listeners have rights:** where a willing speaker exists, protection extends to the communication, its source, and its recipients. "If there is a right to advertise, there is a reciprocal right to receive the advertising."
- **Why protect it:** the consumer's interest in commercial information "may be as keen, if not keener by far," than in the day's political debate. The ban hit hardest the poor, the sick, and the aged. Society needs intelligent, well-informed private economic decisions in a free-enterprise economy.
- **Anti-paternalism:** Virginia feared price competition would drive out "professional" pharmacists. The alternative is to assume "people will perceive their own best interests if only they are well enough informed" and to open channels of communication. Virginia may set professional standards but not by "keeping the public in ignorance."
- **Footnote 24, why commercial speech gets less protection:** it is more easily verifiable (the advertiser knows its own product) and more durable (advertising is the sine qua non of profits, so it is unlikely to be chilled). So there is less need to tolerate inaccuracy, warnings and disclaimers may be required, and the prior-restraint bar may not apply.

Central Hudson Gas & Electric Corp. v. Public Service Commission of New York, 447 U.S. 557 (1980)

8-1 on the bottom line, Powell, J. Brennan, Blackmun, and Stevens concurred in the judgment; Rehnquist, J., dissented.

Rule (the *Central Hudson* test, still good law): (1) Commercial speech is **unprotected** if it is **misleading** or concerns **unlawful activity**. If protected, ask: (2) Is the government's interest **substantial**? (3) Does the regulation **directly advance** that interest (not "ineffective or remote support")? (4) Is it **not more extensive than necessary**? Prongs 2-4 are a form of **intermediate scrutiny**.

Facts: New York completely banned promotional advertising by electric utilities to conserve energy. **Held:** the ban violates the First Amendment.

- The First Amendment's concern for commercial speech rests on the **informational function** of advertising, so the government may ban messages more likely to deceive than inform, or tied to illegal activity.
- **Applied:** the speech wasn't inaccurate or unlawful; energy conservation is plainly substantial; but the record failed to show a **total ban** was no more extensive than necessary.

44 Liquormart, Inc. v. Rhode Island, 517 U.S. 484 (1996)

Unanimous on the bottom line; splintered opinions. Stevens, J., plurality (reasoning later adopted by the full Court).

Rule: Paternalism toward adults is not a valid reason to suppress truthful, non-misleading commercial speech. Blanket bans on such speech about lawful products get "special care" and rarely survive. If the government wants to reduce adult consumption, it must regulate the product directly (ban it, regulate prices, or tax it).

Facts: Rhode Island banned advertising the retail prices of alcoholic beverages to promote temperance. **Held:** invalid.

- Such bans rest on "the offensive assumption that the public will respond 'irrationally' to the truth." Be "especially skeptical of regulations that seek to keep people in the dark for what the government perceives to be their own good."
- **Prong 4 fails:** higher prices could be maintained by direct regulation or increased taxation (the state's own expert conceded this), so there was no "reasonable fit."
- **No "greater includes the lesser":** the power to ban alcohol doesn't include the power to ban ads for it. The Constitution presumes regulating speech is more dangerous than regulating conduct.

Sorrell v. IMS Health Inc., 564 U.S. 552 (2011)

6-3, Kennedy, J. Breyer, Ginsburg, and Kagan dissented.

Rule: A law imposing **content- and speaker-based** burdens on commercial speech is subject to heightened scrutiny. The fear that people will make bad decisions if given truthful information can't justify it, even more so when the audience is sophisticated (doctors). "That the State finds expression too persuasive does not permit it to quiet the speech."

Facts: Vermont barred the sale and use of pharmacy records revealing individual doctors' prescribing practices for marketing, and barred drug makers from using them for "detailing" (sales visits to doctors). Vermont wanted to cut costs and steer doctors toward cheaper, safer generics. **Held:** unconstitutional.

- **Content- and speaker-based:** the law disfavored marketing (particular content) and drug manufacturers (particular speakers), while many other speakers could use the same information.
- The dissent argued the law regulated conduct (data mining), not speech; the casebook sets that issue aside.

Lorillard Tobacco Co. v. Reilly, 533 U.S. 525 (2001)

5-4 in relevant part, O'Connor, J. Stevens, Souter, Ginsburg, and Breyer dissented.

Rule: Some paternalism toward **kids** is allowed: the government may restrict accurate commercial speech to discourage minors' consumption, but the restriction must still satisfy *Central Hudson* prongs 3 and 4. If it keeps too much truthful information from adults, it fails prong 4.

Facts: Massachusetts banned outdoor tobacco ads within 1,000 feet of a school or playground, and indoor point-of-sale ads lower than 5 feet from the floor in stores within that radius. **Held:** both fail.

- **Interest:** preventing underage tobacco use is substantial, "and even compelling," and there was evidence that limiting youth exposure to ads reduces underage use.
- **Outdoor ban fails prong 4:** it would cover 87%-91% of Boston, Worcester, and Springfield, included in-store ads visible from outside, applied to ads of any size, and even reached oral statements. In some areas it was nearly a complete ban on truthful information to adults, who have a right to receive it (*Bolger*: mailbox discourse can't be limited to what suits "a sandbox").
- **5-foot rule fails prongs 3 and 4:** "Not all children are less than 5 feet tall, and those who are certainly have the ability to look up."

Florida Bar v. Went For It, Inc., 515 U.S. 618 (1995)

5-4, O'Connor, J. Kennedy, Stevens, Souter, and Ginsburg dissented.

Rule: A **30-day ban** on targeted direct-mail solicitation of accident victims and their families by personal injury lawyers survives *Central Hudson*. It is the rare attorney-advertising restriction the Court has upheld.

Facts: Florida Bar rules barred personal injury lawyers from sending targeted direct mail to victims and relatives for 30 days after an accident or disaster. **Held:** upheld.

- **Background:** *Bates v. State Bar of Arizona* (1977) struck a ban on price ads for "routine" legal services; lawyer advertising is commercial speech with a measure of protection, and most restrictions have been struck.
- **Substantial interest:** protecting the privacy and tranquility of victims and their loved ones against intrusive contact, and the profession's reputation.
- **Directly advances:** the Bar's 106-page summary of a two-year study, with statistical and anecdotal data, showed the public views post-accident mail as intrusive and reflecting poorly on lawyers.
- **Tailoring:** the ban is brief, and lawyers can still use TV, radio, newspapers, billboards, and untargeted letters.
- The casebook's guess: the Justices were squeamish about "ambulance chasing" tarnishing the profession.

Compelled Commercial Speech

Compelled commercial speech means the government requires sellers to say something about their products or services, usually in ads or on packaging: "contains peanuts," drug side effects, "contains small parts," or that a "free trial" auto-renews. These are often called **disclosure requirements**. *Zauderer* gives governments much more latitude to compel disclosures than to restrict truthful commercial speech.

Zauderer v. Office of Disciplinary Counsel, 471 U.S. 626 (1985)

Unanimous in relevant part, White, J.

Rule (the *Zauderer* test): The government may require **purely factual and uncontroversial information** about the terms under which the seller's services are available if the requirement is **reasonably related to a substantial government interest** (here, preventing consumer deception) and is not **unjustified or unduly burdensome**.

Facts: Philip Zauderer's ads said he handled cases on contingency and "if there is no recovery, no legal fees are owed by our clients." Ohio required disclosure that clients might still owe **costs**. **Held:** the Court struck Ohio's restrictions on attorney ads but upheld the disclosure requirement.

- **Disclosure is not prohibition:** Ohio didn't stop attorneys from conveying information; it only required "somewhat more information."
- **Not *Barnette* or *Wooley*:** Ohio didn't prescribe orthodoxy in politics, nationalism, religion, or opinion, only factual terms of commercial service.
- **Why more lenient:** commercial speech is protected mainly for its value to consumers (*Virginia Pharmacy*), so the advertiser's interest in **not** providing factual information is "minimal." Disclosure requirements "trench much more narrowly" on advertisers than flat bans.
- **Applied:** laypeople don't know "fees" and "costs" differ, so the ad suggested a no-lose proposition. No factual basis showed the requirement was unduly burdensome.

Milavetz, Gallop & Milavetz v. United States, 559 U.S. 229 (2010)

9-0 on the bottom line, Sotomayor, J.

Rule: *Zauderer*, not *Central Hudson*, governs factual disclosures aimed at **inherently misleading** commercial ads.

Facts: Federal bankruptcy law (§ 528) required "debt relief agencies," including attorneys who help file bankruptcy petitions, to identify themselves as such in ads, with related disclosures. Milavetz preferred to be called a law firm. **Held:** upheld.

- **Shares *Zauderer*'s features:** it combats ads promising debt relief without mentioning bankruptcy and its costs; it requires only an accurate statement of legal status and services; and it doesn't stop the advertiser from saying more.
- **The "confusing label" claim fails:** no evidence it confuses; it is accurate by definition; the required "helps people file for bankruptcy relief" gives context; the firm can add that it is a law firm; and it may tailor wording if substantially similar.

National Institute of Family and Life Advocates v. Becerra (NIFLA), 585 U.S. 755 (2018)

5-4, Thomas, J. Breyer, Ginsburg, Sotomayor, and Kagan dissented.

Rule: *Zauderer* does not apply to a required notice that is not about the speaker's **own services** or that addresses a **controversial** topic. Even where *Zauderer* applies, a disclosure fails if it is **unjustified** (purely hypothetical harm) or **unduly burdensome** (drowns out the speaker's message).

Facts: California's FACT Act required (1) **licensed** clinics serving pregnant women to post notice that the state provides free or low-cost services, including **abortion**, with a phone number; and (2) **unlicensed** clinics to state they are not licensed medical facilities. The targets were "crisis pregnancy centers," largely faith-based pro-life organizations. **Held:** both requirements violate the First Amendment.

- **Licensed notice:** *Zauderer* doesn't apply. The notice in no way relates to the clinics' own services, and abortion is "anything but an 'uncontroversial' topic." It fails even intermediate scrutiny: it is wildly **underinclusive** (most of nearly 1,000 community clinics serving 5.6 million patients are exempt), and the state could run its own public-information campaign. It "cannot co-opt the licensed facilities to deliver its message."
- **Unlicensed notice:** fails even under *Zauderer*. Its justification was "purely hypothetical" (practicing medicine without a license is already a crime). It is unduly burdensome: a government-scripted notice on all print and digital ads, in larger or contrasting type, in as many languages as the state chooses. It "drowns out the facility's own message."
- The Court did not question "health and safety warnings long considered permissible" or purely factual disclosures about commercial products.
- **Slides:** the licensed notice failed because it was (1) not about services the clinics offered and (2) controversial (steering patients toward abortion). Professor Klein's guess: (1) alone would have been enough.

CTIA - The Wireless Ass'n v. City of Berkeley, 928 F.3d 832 (9th Cir. 2019)

2-1, W. Fletcher, J. (court of appeals case). Friedland, J., dissented, finding the disclosure confusing.

Rule: *Zauderer* isn't limited to preventing deception. Any **substantial** interest, including **public health and safety**, can support a factual, uncontroversial disclosure.

Facts: Berkeley required cell phone retailers to give buyers a notice that federal radio-frequency (RF) exposure guidelines exist "to assure safety," that carrying an ON phone in a pocket or bra may exceed them, and to consult the user manual. It could be an 8.5 x 11 poster or a 5 x 8 handout bearing the city's logo; retailers could add their own clearly separate information. **Held:** upheld.

- **Other circuits agree:** country-of-origin labels on meat (*American Meat Institute*, D.C. Cir. en banc 2014); mercury labeling (*NEMA v. Sorrell*, 2d Cir. 2001); cigarette health warnings (*Discount Tobacco*, 6th Cir. 2012). *NIFLA* signaled agreement by preserving health and safety warnings.
- **Two *NIFLA* limits on "factual and uncontroversial":** (1) the notice can't take sides in a heated political controversy at odds with the speaker's mission; (2) it must relate to the speaker's own product or service.
- **Applied:** health and safety is substantial; the notice summarizes what the FCC already requires manufacturers to tell users. It is "largely reassuring," not inflammatory. Not unduly burdensome, unlike

San Francisco's soda warning that had to fill 20% of each ad (*American Beverage*, 9th Cir. en banc 2019).

Unpacking the Zauderer Test (Slides)

Element	What it means
Factual and uncontroversial	The Supreme Court has said little. Courts of appeals say a disclosure can qualify even if the seller dislikes it ("drinking alcohol while pregnant can cause birth defects"). *NIFLA*: must concern the seller's own services and not take sides in a controversy.
Substantial interest	Preventing consumer deception surely counts (*Zauderer*, *Milavetz*). Courts of appeals also accept health and safety ("contains peanuts," "nicotine is addictive") and things consumers care about, like country of origin ("Made in China"). Satisfying "idle consumer curiosity" probably isn't enough.
Reasonably related	Undefined by the Court. Less demanding than *Central Hudson* prong 4. Some circuits treat it as rational basis; Professor Klein's guess: more demanding than rational basis but still quite deferential.
Unjustified or unduly burdensome	"Unjustified" overlaps with reasonable relation. "Unduly burdensome" means the requirement chills commercial speech; courts say a disclosure that **drowns out** the seller's own message is unduly burdensome, which in practice restricts the speech.

Synthesis: Restrictions vs. Compelled Disclosures

Case	Regulation	Result and reason
Virginia Pharmacy (1976)	Ban on drug price ads	Struck; commercial speech is protected; anti-paternalism
Central Hudson (1980)	Ban on utility promotional ads	Struck; total ban more extensive than necessary
Florida Bar (1995)	30-day ban on targeted lawyer mail	Upheld; study evidence, brief ban, many alternatives
44 Liquormart (1996)	Ban on liquor price ads	Struck; paternalism toward adults; tax or regulate instead
Lorillard (2001)	Outdoor and 5-foot tobacco ad rules	Struck; too much burden on adults
Sorrell (2011)	Ban on using prescriber data for marketing	Struck; content- and speaker-based; "too persuasive" isn't a reason
Zauderer (1985)	Contingency-fee cost disclosure	Upheld; factual, prevents deception
Milavetz (2010)	"Debt relief agency" label	Upheld; factual, prevents deception
NIFLA (2018)	Abortion-services and unlicensed notices	Struck; not about own services, controversial; hypothetical and burdensome
CTIA (9th Cir. 2019)	Cell phone RF safety notice	Upheld; health and safety suffices

Stretch Exercise: Graphic Cigarette Warnings

	Analysis
Issue	A 2009 federal statute requires cigarette packs and ads to carry prominent health warnings covering 50% of the front and back of packaging and 20% of ads, with FDA-developed graphic images. The Fifth Circuit rejected the manufacturers' challenge to the FDA's latest warnings (*R.J. Reynolds Tobacco Co. v. FDA*, 5th Cir. 2024); the Supreme Court denied cert. Imagine it took the case.
Questions	Does *Zauderer* or *Central Hudson* (or stricter review) apply? Are graphic images "purely factual and uncontroversial"? Is there a substantial interest? Is the size requirement unduly burdensome?
Analysis	**For the government:** the warnings concern the seller's own product, health and safety is a substantial interest (*CTIA*; *NIFLA* preserved health warnings), and smoking's health effects are factual and not genuinely controversial. **For the manufacturers:** graphic images may be designed to provoke emotion rather than inform, which arguably isn't "purely factual." And a warning covering half the package may "drown out" the seller's message, as the 20% soda warning did in *American Beverage*. The answer likely turns on whether each image is accurate and on the burden of the size requirement.

Chapter 9: Content-Neutral Restrictions and Expressive Conduct

Two main topics: (1) time, place, and manner (TPM) regulations and (2) expressive conduct (aka symbolic speech). They overlap, so study them together. First, revisit the most important distinction in speech law: content-neutral vs. content-based vs. viewpoint-based.

Type	Examples	Standard
Content neutral (nothing to do with the message)	"No loudspeakers in the park between 10pm and 6am"; "No picketing on Main Street during rush hour"; "No leaflets on trees in the park"	**Intermediate scrutiny**; the government sometimes wins, sometimes loses
Content based (turns on subject matter)	"No speech about sports"; "No plays about politics"; "No leaflets about tutoring services"	**Strict scrutiny** unless an unprotected category; the government usually loses
Viewpoint based (turns on the speaker's perspective)	"No speech that criticizes baseball"; "No speech that celebrates the Phillies"; "No leaflets that support legalizing marijuana"	**Strict scrutiny**, even within an unprotected category (*R.A.V.*); the government almost always loses

- **TPM regulations** are the most common content-neutral rules: they regulate **when**, **where**, and **how** speech occurs. Wrinkle: a TPM rule that is also content based ("no loudspeakers in the park between 10pm and 8am *for speech about sports*") gets strict scrutiny.
- **Expressive conduct** is conduct intended to convey a message where, in the circumstances, the message would likely be understood (picketing, flag burning, cross burning, armbands). It is protected under rules similar to, but not identical to, those for ordinary speech.
- **Outline tip:** quote the specific words in the challenged law that make it content based or viewpoint based.

Content-Based Versus Viewpoint-Based (Revisited)

Police Department of Chicago v. Mosley, 408 U.S. 92 (1972)

9-0 on the bottom line, Marshall, J.

Rule: A law that permits some picketing but not other picketing based on its **subject matter** is content based and violates the First Amendment. "Above all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content."

Facts: Earl Mosley, a postal employee, peacefully picketed Jones Commercial High School alone for seven months with a sign saying it practiced "black discrimination" and had a "black quota." Chicago then banned picketing within 150 feet of a school during school hours (plus a half hour before and after), **except** "peaceful picketing of any school involved in a labor dispute." **Held:** unconstitutional.

- The operative distinction was "the message on a picket sign": labor-dispute picketing allowed, all other peaceful picketing banned.
- **Casebook note:** the famous sentence overstates modern doctrine. Content-based restrictions get strict scrutiny; they aren't invalid per se.

Vidal v. Elster, 602 U.S. 286 (2024)

Unanimous in relevant part, Thomas, J. (The Justices split on special trademark rules; that part isn't excerpted.)

Rule: A **content-based** rule targets a subject or topic; a **viewpoint-based** rule, "a particularly egregious form of content discrimination," targets particular views on a subject. The Lanham Act's "names clause" is content based but not viewpoint based.

Facts: Steve Elster sought to register "Trump too small" (with a hand-gesture illustration) for shirts and hats, drawing on a 2016 debate exchange between Trump and Marco Rubio. The PTO refused under the names clause, which bars marks identifying a living person without written consent.

- **Not viewpoint based:** the clause applies whether the use of the name is flattering, critical, or neutral. The PTO also refused "Welcome President Biden," "I Stump for Trump," and "Obama Pajama."
- **Practical-operation argument rejected:** Elster said consent is easier to get for flattering marks, but people withhold consent for many reasons (avoiding association with the goods, or preventing others from profiting from their name).
- **Content based:** marks containing names are treated differently from marks conveying other ideas.
- **Contrast *Matal v. Tam*** (2017, more in Ch. 10): the bar on **disparaging** marks was viewpoint based because it targeted one viewpoint, "giving offense."

Chiles v. Salazar, 146 S. Ct. 1010 (2026)

8-1, Gorsuch, J. Jackson, J., dissented. Kagan and Sotomayor concurred.

Rule: As applied to **talk therapy**, Colorado's ban on "conversion therapy" for minors is a **viewpoint-based** regulation of speech. It permits counselors to affirm a client's identity or assist a gender transition, but forbids speech that helps a client change sexual orientation or gender identity.

Facts: Kaley Chiles, a licensed counselor, offers only talk therapy (no medication, physical treatment, or coercive practices) and helps clients pursue their own goals. Colorado's 2019 law, adopted in response to a teen mental-health crisis and evidence linking conversion therapy to depression and suicidality, banned "any practice or treatment" attempting to change a minor's sexual orientation or gender identity, while expressly allowing "acceptance, support, and understanding" and "assistance to a person undergoing gender transition." Chiles challenged it only as applied to her talk therapy.

- "The spoken word is perhaps the quintessential form of protected speech," and all Chiles does is talk.
- The law goes beyond content: it prescribes which views she may express. Any law suppressing speech by viewpoint, "however well-intentioned," is an "egregious assault" on free thought and the marketplace of ideas.
- **Why tricky:** Colorado argued it regulated the **practice of medicine** (conduct), with only incidental effects on speech. Kagan and Sotomayor joined because the law was viewpoint based. The Court left open the harder question of a **viewpoint-neutral** regulation of health providers' speech.

Time, Place, and Manner Regulations

Rule (*Ward* two-step, still good law): (1) Is the TPM regulation **content neutral**? If not, **strict scrutiny**. (2) If so, intermediate scrutiny: it must be **narrowly tailored** to serve a **significant government interest** and leave open **ample alternative channels** for communication. "Narrowly tailored" is **not** least restrictive means; it means not burdening **substantially more speech than necessary**.

- **Purpose is key** to content neutrality: look for a reason unrelated to the message (noise, clutter, competition for shared space).
- Not every case reaches every element. Note which issues the Court skips and why; that often matters in litigation.

Ward v. Rock Against Racism, 491 U.S. 781 (1989)

6-3, Kennedy, J. Blackmun, J., concurred in the judgment; Marshall, Brennan, and Stevens dissented.

Rule: A content-neutral TPM rule need not be the least intrusive means. It is narrowly tailored if it promotes a substantial interest that would be achieved less effectively without it, and isn't **substantially broader than necessary**.

Facts: Central Park's Naumberg Bandshell sits near the Sheep Meadow (a designated quiet area) and Central Park West residences. After complaints about past concerts, New York City required bandshell performers to use city-provided sound equipment and a city sound technician. A rock concert sponsor challenged it. **Held:** upheld (reversing the Second Circuit).

- **Music is protected expression**, which was undisputed.
- **Content neutral:** the controlling question is whether the government adopted the rule "because of disagreement with the message it conveys." Controlling noise to protect the Sheep Meadow and residents has nothing to do with content. Incidental effects on some speakers don't matter (*Renton*).
- **Narrowly tailored:** the Second Circuit erred by demanding the "least intrusive means." The city's technician controlled volume directly and effectively, while giving sponsors autonomy over the sound mix, so it had no material impact on artistic control.
- **Footnote 6:** *Boos v. Barry* (1988) used least-restrictive-means because it involved a **content-based** ban on signs criticizing foreign governments. TPM rules never get strict scrutiny.
- **Alternative channels** easily met: performances continue; only amplification is regulated.

City of Ladue v. Gilleo, 512 U.S. 43 (1994)

9-0, Stevens, J.

Rule: Even a content-neutral rule fails if it forecloses an **entire, unique medium** of expression without **adequate alternative channels**. A near-total ban on residential signs violates the First Amendment.

Facts: Margaret Gilleo put a 24-by-36-inch sign on her lawn: "Say No to War in the Persian Gulf, Call Congress Now." Ladue banned residential signs except 10 exemptions (small ID signs, for-sale signs, church and school signs, commercial signs in commercial zones, and more) to prevent "ugliness, visual blight and clutter." **Held:** unconstitutional.

- **Two ways to attack sign laws:** (1) they restrict **too little**, because exemptions discriminate by message (underinclusiveness may favor one side of a debate); or (2) they restrict **too much** protected speech. The Court assumed **arguendo** the exemptions were content neutral and decided on ground (2).

- **Entire medium foreclosed:** the Court has struck total bans on pamphlets, handbills, door-to-door literature, and live entertainment. Residential signs are a "venerable" and important medium, especially in political campaigns.
- **No adequate substitutes:** a sign at your home identifies **you** as the speaker; it is unusually **cheap and convenient** (vital for people of modest means or limited mobility); and it reaches **neighbors**.
- "More temperate measures" could address Ladue's concerns.

Thomas v. Chicago Park District, 534 U.S. 316 (2002)

9-0, Scalia, J.

Rule: A content-neutral **permit requirement** is valid if it contains **adequate standards** to guide the official's decision and render it subject to effective judicial review. Unduly broad discretion risks content-based favoritism.

Facts: Chicago required a permit for park events with more than 50 people. **Held:** upheld.

- **Not censorship:** unlike *Freedman v. Maryland* (1965) (films submitted to a Board of Censors), no ground for denial concerns what a speaker might say. The rule applies to all park activity: "the picnicker and soccer player, no less than the political activist or parade marshal."
- **Purpose:** coordinate multiple uses of limited space, preserve facilities, prevent dangerous or unlawful uses, and ensure accountability for damage. Unregulated access "could easily reduce rather than enlarge the park's utility as a forum for speech."
- **Standards:** denial only for listed reasons (incomplete or false application, unpaid prior damage, earlier permit for the same time and place, unreasonable danger, violated prior permit). These are specific and objective, not "the whim of the administrator," and reviewable on appeal and in state court.

Watchtower Bible & Tract Society v. Village of Stratton, 536 U.S. 150 (2002)

8-1 on the bottom line, Stevens, J. Rehnquist, C.J., dissented.

Rule: Requiring a permit from the mayor before going door-to-door to promote **any cause** violates the First Amendment, even assuming intermediate scrutiny. The Court didn't decide which standard applies.

Facts: Stratton required canvassers promoting any "cause" on private residential property to first get a permit from the mayor's office. Residents could also post "no solicitation" signs. **Held:** unconstitutional.

- **Interests:** preventing fraud and crime and protecting residents' privacy are important.
- **Breadth:** if limited to commercial activity and fundraising, it arguably would be tailored. But it covered Camp Fire Girls, Jehovah's Witnesses, political candidates, trick-or-treaters, and neighbors seeking votes or a better garbage collector.
- It is offensive "to the very notion of a free society" that a citizen must inform the government and get a permit to speak to neighbors, even if permits are free and prompt.
- **Three pernicious effects:** (1) it destroys **anonymity** (fear of retaliation or ostracism, or privacy); (2) some people's **religious scruples** forbid applying for a license; (3) it bans **spontaneous speech** (deciding on a weekend to campaign, or crossing the street to urge a neighbor to vote against the mayor).

Expressive Conduct

Rule (three steps): (1) Is the conduct **expressive**? It is if the actor **intended to convey a message** and, in the circumstances, viewers would **likely understand** it. No specific message is required, and offensive conduct still counts. If not expressive, the First Amendment isn't implicated. (2) Is the government regulating for reasons **related** to the message? If yes, **strict scrutiny**. (3) If **unrelated**, apply the ***O'Brien* test** (intermediate scrutiny).

- **Step 1 examples:** burning a flag at a protest is expressive; burning a rubbish bin that happens to hold a flag is not. People in white robes burning a cross is expressive; a construction worker burning scrap wood nailed in a cross shape is not. Trust common sense.
- **Step 2: read the text.** Texas's law (*Johnson*) covered flag desecration that "seriously offends" viewers, which is plainly about the message. The federal statute (*Eichman*) exempted disposing of worn or soiled flags, revealing concern with disrespect. A ban on lawn bonfires that sweeps in a book burning is (almost certainly) about fire hazards.
- **Overlap with TPM:** *Thomas*'s permit rule covered picnics and soccer (non-expressive) as well as parades (expressive). In practice, TPM intermediate scrutiny and *O'Brien* are very similar (e.g., banning parades during rush hour).

United States v. O'Brien, 391 U.S. 367 (1968)

7-1, Warren, C.J. (Marshall, J., recused). Douglas, J., dissented on non-First Amendment grounds.

Rule (the *O'Brien* test): When "speech" and "nonspeech" elements combine in the same conduct, a regulation is justified if it (1) furthers an **important or substantial** government interest; (2) the interest is **unrelated to the suppression of free expression**; and (3) the **incidental restriction** on expression is **no greater than essential** to further that interest.

Facts: On March 31, 1966, David O'Brien and three companions burned their draft registration cards on the South Boston Courthouse steps to persuade others to oppose the Vietnam War. He was convicted under a federal law making it a crime to knowingly destroy or mutilate a registration certificate. **Held:** conviction upheld.

- **Interest:** the certificates prove registration and keep the system for raising armies running smoothly.
- **Tailoring:** no alternative would more precisely ensure the certificates' continued availability than banning their willful destruction.
- **Casebook illustration:** closing a bookstore for fire code violations advances safety, and the incidental loss of the bookstore is no greater than necessary.

Texas v. Johnson, 491 U.S. 397 (1989)

5-4, Brennan, J. (with Marshall, Blackmun, Scalia, and Kennedy). Rehnquist, White, and O'Connor dissented; Stevens dissented separately.

Rule: A law punishing flag desecration because it offends viewers is **related to expression**, so *O'Brien* doesn't apply. Under **strict scrutiny**, the conviction of a flag burner for political protest violates the First Amendment.

Facts: At the 1984 Republican National Convention in Dallas, Gregory Lee Johnson burned an American flag in front of City Hall as protesters chanted, "America, the red, white, and blue, we spit on you." No one was hurt or threatened, but witnesses were seriously offended. Texas law defined "desecrate" as physically mistreating an object in a way the actor knows will "seriously offend" observers. **Held:** conviction reversed.

- **Expressive:** the test is intent to convey a particularized message plus a great likelihood it would be understood. Examples: black armbands, sit-ins, military uniforms in antiwar theater, picketing, a peace sign on a flag, refusing to salute. A flag's very purpose is symbolic (*Barnette*: "a short cut from mind to mind"). Texas conceded the point.
- **Related to expression:** Texas's interest in preserving the flag as a symbol of nationhood and unity arises "only when a person's treatment of the flag communicates some message."
- **Bedrock principle:** the government may not prohibit an idea because society finds it offensive. *Barnette*'s "fixed star": no official can prescribe orthodoxy.
- **Ends vs. means:** the government may encourage respect for the flag by persuasion and example, but not criminally punish flag burning as protest. Tolerating criticism is "a sign and source of our strength."

United States v. Eichman, 496 U.S. 310 (1990)

5-4, Brennan, J. (same majority as Johnson). Stevens, Rehnquist, White, and O'Connor dissented.

Rule: A facially neutral flag-protection statute is still **related to suppressing expression** when its terms reveal concern with the flag's symbolic value, so it fails like the Texas law.

Facts: After *Johnson*, Congress passed the Flag Protection Act of 1989, punishing anyone who "knowingly mutilates, defaces, physically defiles, burns, maintains on the floor or ground, or tramples upon" a U.S. flag, with an exception for disposing of a flag that is "worn or soiled." **Held:** unconstitutional as applied to flag-burning protesters.

- The government argued the Act, unlike Texas's, ignores motive and effect on onlookers.
- But each verb except possibly "burns" "unmistakably connotes disrespectful treatment," and the worn-or-soiled exemption protects acts traditionally associated with patriotic respect.
- **Casebook view:** the authors find the four dissents in each case "astonishing," and note the split wasn't liberal versus conservative (Scalia and Kennedy were in the majority).

Synthesis: TPM and Expressive Conduct

Case	Regulation	Result and key reason
Mosley (1972)	School picketing ban except labor disputes	Struck; content based by subject matter
O'Brien (1968)	Draft card destruction	Upheld; interest unrelated to message
Ward (1989)	City sound technician at bandshell	Upheld; neutral, not substantially broader than necessary
Johnson (1989)	Flag desecration that "seriously offends"	Struck; related to message, fails strict scrutiny
Eichman (1990)	Federal Flag Protection Act	Struck; terms reveal concern with disrespect

Case	Regulation	Result and key reason
Ladue (1994)	Near-total residential sign ban	Struck; forecloses unique medium, no adequate alternatives
Thomas (2002)	Park permits for 50+ people	Upheld; neutral, adequate standards
Watchtower (2002)	Permit for door-to-door canvassing	Struck; too much speech, anonymity, spontaneity
Vidal (2024)	Trademark names clause	Content based, not viewpoint based
Chiles (2026)	Conversion-therapy ban as applied to talk therapy	Viewpoint based

Stretch Exercises: Honking and Cigarette Vending Machines

	Analysis
Honking	California bans honking "except when reasonably necessary to warn of a safety hazard." A driver was cited for honking in support of a political demonstration. Arguments for her: honking at a protest is **expressive conduct** (intent to show support, likely understood). The ban is facially neutral, so expect *O'Brien* or TPM intermediate scrutiny. Argue it burns substantially more expression than needed to serve traffic safety and noise interests (a brief supportive honk creates no hazard), and that it leaves no real alternative for a driver to join a demonstration from the road.
Vending machines	A 2010 federal law bans cigarette vending machines except in adults-only areas. Arguments for manufacturers: vending machines display brands and products (commercial speech), so restricting them limits a channel for truthful information to adults (*Lorillard*). Counter: the law regulates a **sales method** (conduct) to keep cigarettes from minors, with only incidental effects on expression, so *O'Brien* or *Central Hudson* is easily met. Ads remain available elsewhere, and adults can still buy cigarettes.

Chapter 10: Government Speech

Big picture: so far the course has addressed the government as **regulator** of private speech ("hate speech is unlawful," "no loudspeakers 10pm-8am," "contains peanuts"). Chapters 10-12 turn to the government acting in **nonregulatory capacities**, each with its own specialized First Amendment doctrine. These categories can overlap, and they aren't the only ones.

Capacity	Example involving speech	Doctrine
Administrator (running a program)	CDC ads: "Get your kids vaccinated against measles"; DMV "Don't Drink and Drive" signs	**Government speech** (Ch. 10)
Funder	NEA arts grants; USAID family-planning contracts; NIH grants conditioned on disavowing DEI	**Funding conditions** (Ch. 11)
Property owner	Limits on speech in the Capitol; banning large protests in national parks	**Forum doctrine** (Ch. 11)
Employer	DOJ forbids its lawyers to criticize the government's litigation positions	**Employee speech** (Ch. 12)
School administrator	Public school discipline for student speech	**Student speech** (Ch. 12)

The simple rule: The First Amendment **does not restrict government speech**. The government may express its own message without presenting the other side. The disputes are about whether particular speech **counts as government speech or private speech**.

Government-speech checklist. (1) Who is really speaking? Apply the *Shurtleff* holistic inquiry, looking at three types of evidence: **history** of the medium, **public perception** of who is speaking, and the government's **active control** over the content. Control over content is often decisive. (2) If government speech, no First Amendment limit on its message, but it can't **compel** private people to carry its message (*Wooley*). (3) If private speech, apply the ordinary rules (viewpoint discrimination is forbidden). (4) Even pure government speech can't be used to **coerce** third parties into suppressing others' speech (*Vullo*).

What Counts as Government Speech

Walker v. Texas Division, Sons of Confederate Veterans, Inc., 576 U.S. 200 (2015)

5-4, Breyer, J. (with Thomas, Ginsburg, Sotomayor, and Kagan). Alito, J., dissented, joined by Roberts, Scalia, and Kennedy.

Rule: Texas **specialty license plates** are **government speech**, so Texas may refuse a design (a Confederate battle flag) without violating the Free Speech Clause.

Facts: Texas offers general-issue, specialty, and personalized plates. Specialty designs come from the legislature ("Keep Texas Beautiful," "Fight Terrorism"), private vendors ("Get it Sold with RE/MAX"), or nonprofit applications approved by the DMV Board, which "may refuse" a design "if the design might be offensive to any member of the public." The Sons of Confederate Veterans proposed a plate with its logo and a Confederate battle flag. After public comment, including letters from elected officials, the Board

unanimously denied it because many people reasonably find the flag offensive. **Held:** no First Amendment violation (reversing the Fifth Circuit).

- **Why government must be free to speak:** a recycling program couldn't work if letters had to include the trash company's opposing plea; a vaccination campaign couldn't work if officials had to voice anti-vaccine views.
- **Built on *Pleasant Grove City v. Summum* (2009):** a city's acceptance of privately donated permanent monuments in a park is government speech, based on (1) the history of governments using monuments to speak, (2) observers reasonably reading monuments as the owner's message, and (3) the city's control over selection.
- **History:** plates have long carried state messages (Arizona's steer head, 1917; New Hampshire's "Old Man of the Mountain"; "America's Dairyland"; Texas's Lone Star since 1919).
- **Public perception:** plates are essentially **government IDs**, with "TEXAS" at the top, issued and owned by the state, and required by law. A driver who wanted a purely private message could use a bumper sticker; choosing a plate suggests wanting the state's endorsement.
- **Control:** Texas has "sole control" over design, the Board must approve every design, and it has rejected at least a dozen. Texas may offer "Fight Terrorism" without offering plates promoting al Qaeda.
- **Compelled speech distinguished:** drivers do convey plate messages (*Wooley*'s "mobile billboard"), but just as Texas can't force SCV to carry its message, SCV can't force Texas to put the Confederate flag on its plates.
- **Alito, J., dissenting:** sit by a Texas highway and watch 350+ specialty plates go by (colleges, fraternities, a soft drink, "Rather Be Golfing," Notre Dame, a NASCAR driver). Is that really the state's message? Texas turned the plates into "little mobile billboards" for private speech and rejected one because it offends: "blatant viewpoint discrimination." Could a state do the same with highway billboards or a campus bulletin board?

Matal v. Tam, 582 U.S. 218 (2017)

8-0 in relevant part, Alito, J. (Gorsuch, J., recused).

Rule: Registered trademarks are private speech, not government speech. The Lanham Act's bar on marks that "disparage" any persons is viewpoint discrimination and violates the First Amendment: speech may not be banned "on the ground that it expresses ideas that offend."

Facts: Asian-American band members sought to register "The Slants," a slur they hoped to "reclaim" and drain of its force. The PTO refused under the disparagement clause. **Held:** the clause is unconstitutional.

- **Government speech is essential:** requiring viewpoint neutrality would be paralyzing. WWII posters urged enlistment and war bonds without balancing posters urging the opposite.
- **But dangerous:** if private speech could become government speech "by simply affixing a government seal of approval," the government could silence disfavored views. So use "great caution" before extending the doctrine.
- **Why trademarks are private:** the government doesn't create or edit marks, and registration is mandatory if viewpoint-neutral requirements are met. Otherwise the government would be "babbling prodigiously and incoherently" ("Abolish Abortion" and "I Stand With Planned Parenthood"; "Just do it"; "Have it your way").

- **Contrast *Johanns v. Livestock Marketing Ass'n* (2005):** beef ads were government speech because the message was "from beginning to end" the federal government's, with officials setting guidelines, attending meetings, and holding the power to edit or reject.
- **Slippery slope:** if registration made speech the government's, copyright registration of a book might too.

Shurtleff v. City of Boston, 596 U.S. 243 (2022)

9-0 on the bottom line, Breyer, J. Alito, Thomas, and Gorsuch concurred in the judgment, rejecting the three-factor test.

Rule: Courts conduct a **holistic inquiry** into whether the government intends to speak for itself or to regulate private expression, looking at three types of evidence: (1) the **history** of the expression; (2) the **public's likely perception** of who is speaking; and (3) the extent to which the government has **actively shaped or controlled** the expression. Boston's flag-raising program was **private speech**, so refusing a "Christian flag" violated the First Amendment.

Facts: Boston flies the U.S., Massachusetts, and Boston flags on three poles outside City Hall. Since 2005 it let groups replace the city flag for a few hours during ceremonies; it approved about 50 flags at 284 ceremonies (mostly other countries' flags, plus Pride Week, EMS workers, a community bank) and never refused one. In 2017 Harold Shurtleff of Camp Constitution asked to raise a "Christian flag." The city refused, fearing an Establishment Clause violation. **Held:** the refusal violated the Free Speech Clause.

- **History favors Boston:** flags at the seat of government usually convey government messages (a foreign flag at Blair House; Boston raising the Canadiens' banner after losing a hockey bet).
- **Public perception is mixed:** people associate City Hall flags with the city, but Boston regularly lowered its flag for others.
- **Control decides it:** Boston controlled date, time, and premises (and provided a hand crank) but **not the flags' content or meaning**. It approved every request and had no written policy on what could be flown. That is "the most salient feature of this case."
- Boston can change its policy going forward.
- **Alito, J., concurring in the judgment:** neither control nor final approval authority distinguishes government speech from censorship, and focusing on public perception invites misattribution. His test: government speech occurs only if the government **purposefully expresses its own message through persons authorized to speak for it**, without using a means that abridges private speech.
- **Slides:** *Shurtleff* is also an example of a **designated public forum** (Ch. 11): flagpoles aren't traditionally open to the public, but Boston chose to open one.

A Limit: Government Speech Can't Coerce

National Rifle Association of America v. Vullo, 602 U.S. 175 (2024)

9-0, Sotomayor, J.

Rule: Government officials may criticize views and try to **persuade**, but they may not use state power to **coerce** private parties into punishing or suppressing disfavored speech by others. An official "cannot do indirectly what she is barred from doing directly" (*Bantam Books v. Sullivan*, 1963).

Facts: The NRA alleged that Maria Vullo, superintendent of the New York Department of Financial Services, threatened enforcement actions against regulated insurance companies unless they cut ties with the NRA and other gun-promotion groups. **Held:** the allegations, if true, state a First Amendment claim.

- This isn't about whether speech is the government's; it is a separate limit on what government speech may do.
- An official may share her views forcefully, relying on "the merits and force of her ideas," but not on threats of legal sanctions. The line between persuasion and coercion can be fuzzy.
- **Slides example:** an official can't say, "I will revoke your company's license unless you boycott the NRA."

Synthesis: Government or Private Speech?

Case	History	Perception	Control	Result
Summum (2009), park monuments	Favors gov't	Favors gov't	City selects	Government speech
Johanns (2005), beef ads	n/a	n/a	Message set and edited by gov't	Government speech
Walker (2015), specialty plates	Favors gov't	Plates are gov't IDs	Approves every design; rejected a dozen	Government speech (5-4)
Tam (2017), trademarks	n/a	Not gov't views	No editing; registration mandatory	Private speech
Shurtleff (2022), City Hall flagpole	Favors gov't	Mixed	None over content	Private speech
Women for America First (2d Cir. 2022), street murals	Streets carry gov't messages	City announced its values	Mayor directed, DOT funded, final approval	Government speech

Stretch Exercises: Street Murals and AI Chatbots

	Analysis
Murals	In July 2020 New York City painted "Black Lives Matter" murals on seven streets, including Fifth Avenue in front of Trump Tower, at Mayor de Blasio's direction. Women for America First asked to paint its motto on a city street; DOT refused ("installations on City roadways that are open to traffic" aren't permitted). The Second Circuit (*Women for America First v. Adams*, 2022) held the murals were government speech under all three factors: streets have long carried city messages (traffic markings; anti-graffiti laws reserve them); the public would see a permanent street message as the city's, especially since the mayor said the murals "send a message that these are our values"; and the city exercised editorial control (mayor's direction, city employees painting, DOT funding, final approval).

	Analysis
Questions	Did the Second Circuit apply the precedent correctly? Is the precedent right? Would your answer change if the murals said "Black Lives Don't Matter," "Abortion is Murder," "Defund the Police," "Support Israel," or "Free Palestine"? Should there be any limit on the government's ability to spread its own messages?
AI chatbots	*Garcia* (Ch. 5) doubted chatbot output reflects the human intent needed for "speech." If the CDC deploys an AI chatbot to answer vaccine questions, are its answers government speech? Under *Shurtleff*, the government chooses to deploy the tool, the public likely attributes the answers to the CDC, and the agency controls training and guardrails, though not each output. Should it matter that "the government" isn't a human? Courts haven't developed a doctrine for AI-generated government communications.

Chapter 11: Government-Funded Speech and Speech on Government Property

Big picture: two more nonregulatory capacities, which overlap heavily with government speech (Ch. 10): the government as **funder** of private speech and as **owner of property** that private speakers use (forum doctrine). "Property" includes not just streets and parks but tangible things like flagpoles and classrooms, and intangible things like a university's student activity fund. That is why the doctrines overlap.

Funding and forum checklist. Funding: (1) Is the government paying private parties to deliver **its** message (government speech; it may keep that message from being "garbled or distorted")? Or is the program designed to **facilitate private speech** (*Velazquez*)? (2) Does the condition **define the limits of the program** (OK, *Rust*) or **leverage funding to regulate speech outside its contours** (unconstitutional condition, *USAID I*)? **Forum:** (1) Is the speech private, or the government's own (*Walker*: no forum)? (2) What type of forum? (3) Apply that forum's standard. (4) Whatever the forum, **viewpoint discrimination** almost always fails.

Government-Funded Speech

Rule: The government may fund private entities to communicate **its** message and may limit what the funds are used to say. Generally, funding choices get **rational-basis review**. "When the government disburses public funds to private entities to convey a governmental message, it may take legitimate and appropriate steps to ensure that its message is neither garbled nor distorted by the grantee." But it may not impose conditions that regulate speech **"outside the contours of the spending program itself."** The line is fuzzy, and the Court admits it.

- **Examples:** the CDC may fund nonprofits to promote measles vaccination and bar them from using the grant to say something different; a DMV may contract for "Drive Sober" signs. But the CDC couldn't bar grantees from criticizing it on unrelated matters, and the DMV couldn't bar contractors from using their **own money** to advocate a higher speed limit.
- **Unconstitutional conditions doctrine:** there are limits to the conditions the government may attach to grants. It often involves speech but isn't limited to it: the government almost certainly couldn't require grantees to give up their Sixth Amendment jury-trial right or Second Amendment rights.
- **Study tip:** focus on how *Velazquez* and *USAID I* distinguished *Rust*, and be ready to argue both cases both ways.

Rust v. Sullivan, 500 U.S. 173 (1991)

5-4, Rehnquist, C.J. Blackmun, Marshall, O'Connor, and Stevens dissented.

Rule: The government may fund a program that advances its goals without funding alternatives, and may bar grantees from using program funds for speech outside the program's scope. That isn't viewpoint discrimination; the government "has merely chosen to fund one activity to the exclusion of the other." Later cases explain *Rust* as the government using private speakers to transmit information about its own program.

Facts: Title X funded projects where doctors counseled patients on family planning (contraception, infertility) but barred using Title X funds for abortion counseling. Grantees, staff, and patients claimed a free speech violation. **Held:** upheld.

- **Selective funding is fine:** when Congress created the National Endowment for Democracy, it didn't have to fund programs promoting communism or fascism. "When the Government appropriates public funds to establish a program it is entitled to define the limits of that program."
- **Key fact, the grantee stays free outside the program:** it may still perform abortions, provide abortion-related services, and engage in abortion advocacy, using separate, independent programs funded by other sources.

Legal Services Corporation v. Velazquez, 531 U.S. 533 (2001)

5-4, Kennedy, J. Scalia, J., dissented, joined by Rehnquist, O'Connor, and Thomas.

Rule: When a funding program is designed to **facilitate private speech** rather than promote a government message, the government may not restrict that speech to insulate its own laws from challenge. Barring LSC-funded lawyers from challenging the validity of welfare laws violates the First Amendment.

Facts: The Legal Services Corporation funds local nonprofits whose lawyers represent indigent clients in civil matters, including welfare claims. Congress barred funded lawyers from cases involving "an effort to amend or otherwise challenge existing law": they could argue an agency got the facts wrong or misapplied a statute, but not that a welfare law was unconstitutional or conflicted with federal law, and had to withdraw if such an issue arose mid-case. (Other, unchallenged LSC limits bar political campaigns, most criminal cases, and class actions without approval.) **Held:** unconstitutional.

- ***Rust* distinguished:** there, the government used private speakers to convey its own program's message. Here, the LSC lawyer speaks for a **private client** in a claim **against** the government; the government's lawyer on the other side delivers the government's message. Advice and advocacy by the LSC lawyer can't be government speech "even under a generous understanding of the concept."
- Congress needn't fund LSC lawyers or every kind of representation, but it can't define the litigation it funds to exclude "certain vital theories and ideas" to insulate its own interpretation of the Constitution from judicial challenge.
- **Scalia, J., dissenting:** if the doctors' confidential advice in *Rust* was government speech, it's hard to imagine what subsidized speech isn't. Doctors also owe professional duties to patients. The subsidy prevents no one from speaking and is "indistinguishable in all relevant respects" from *Rust*.

Agency for International Development v. Alliance for Open Society International (USAID I), 570 U.S. 205 (2013)

6-2, Roberts, C.J. (Kagan, J., recused). Scalia, J., dissented, joined by Thomas.

Rule: The government may define the limits of what it funds, but it may not **leverage funding to regulate speech outside the contours of the program**. Requiring grantees to adopt as their own a government policy on an issue of public concern fails: it goes "beyond defining the limits of the federally funded program to defining the recipient." "Congress cannot recast a condition on funding as a mere definition of its program in every case, lest the First Amendment be reduced to a simple semantic exercise" (*Velazquez*).

Facts: The 2003 Leadership Act funded NGOs fighting HIV/AIDS abroad. Condition 1 (unchallenged): funds can't be used to promote or advocate legalizing prostitution or sex trafficking. Condition 2 (the **Policy Requirement**): grantees must have a policy explicitly opposing prostitution and sex trafficking. U.S. NGOs feared alienating host governments, hampering work with sex workers, and having to censor privately funded discussions. **Held:** the Policy Requirement violates the First Amendment.

- As a direct regulation, the requirement would "plainly violate" the First Amendment. Normally a recipient that objects to a condition can decline the funds, but some conditions unconstitutionally burden speech.
- **Why outside the program:** condition 1 already keeps federal money from promoting prostitution, so the Policy Requirement must do "something more." A recipient can't profess the government's belief when spending federal funds and then assert a contrary belief or neutrality "on its own time and dime."
- The government's "fungibility" argument (federal money frees private money for pro-prostitution advocacy) was unsupported.
- **Scalia, J., dissenting:** the requirement just selects suitable agents for the government's chosen strategy. The government needn't hire the American Gourmet Society to run a healthy-eating program. The principle wouldn't let the government exclude defense contractors who won't abjure prostitution, because there it is unrelated to the program.

Agency for International Development v. Alliance for Open Society International (USAID II), 591 U.S. 430 (2020)

5-3, Kavanaugh, J. (Kagan, J., recused). Breyer, Ginsburg, and Sotomayor dissented.

Rule: The plaintiffs' legally separate **foreign affiliates operating abroad have no First Amendment rights**, so the Policy Requirement may still be applied to them. Read for general con law principles.

- **Two bedrock principles:** (1) foreign citizens outside U.S. territory don't possess rights under the U.S. Constitution (otherwise military, intelligence, and law enforcement actions abroad would be constrained); (2) the affiliates were incorporated abroad and are legally separate (no veil-piercing argument).

Speech on Government Property (Forum Doctrine)

Baseline (private property): when the government restricts speech on **private** property, content-based rules get strict scrutiny ("no political yard signs") and content-neutral TPM rules get intermediate scrutiny ("two signs per yard," probably upheld; compare *Ladue*). On **government** property, the rules depend on the type of forum. (Professor Klein: the plural is "fora," but courts say "forums," "even though it makes me wince.")

Forum	What it is	Standard
Traditional public forum	Property historically open to the public for expression: **streets, sidewalks, parks**, "time out of mind" used for assembly and debate	Same as private property: content- or viewpoint-based restrictions get **strict scrutiny**; content-neutral TPM rules get intermediate scrutiny (*Thomas*)
Designated public forum	Property the government **chose to open** to the general public for expression though not traditionally used that way (Boston's flagpole in *Shurtleff*; university meeting rooms, a municipal theater)	**Same as traditional public forum**, so long as the government keeps it open (it needn't keep it open forever)

Forum	What it is	Standard
Limited public forum	Property opened for private speech in **particular ways**, for certain groups or topics (classrooms for student-group meetings; a city hall lobby for Civil War art; a bulletin board for study-abroad notices; a student activity fund)	Restrictions must be **reasonable in light of the forum's limited purpose**; **viewpoint discrimination** gets strict scrutiny; speakers get equal access consistent with the purpose
Nonpublic forum	Property used for the government's **internal purposes**; some private access doesn't convert it (school interoffice mail in *Perry*; airport terminals; military bases)	Restrictions must be **reasonable** and **not an effort to suppress disfavored views**; distinctions by subject matter and speaker identity are allowed

- **Fuzzy lines:** the line between a limited public forum and a nonpublic forum with some private access is fuzzy. So is defining a limited forum's purpose, which is often the heart of the dispute. Tip: the government can define the purpose narrowly up front ("Post information about **opportunities** to study abroad here").

Professor Klein's practice perspective (from decades at DOJ). Her old professor Richard Fallon once said the forum categories were "the result of a law clerk run amok. That was me!" In practice, ask: Is it a **traditional public forum**? If so, content- or viewpoint-based restrictions very likely fail. If not, there is some flexibility for **content-based** restrictions that are reasonable in light of the government's objectives, but **viewpoint-based** ones still likely fail. Anywhere, **content-neutral** restrictions likely survive if reasonable and alternatives remain. In litigation, argue the government wins under any characterization (nonpublic or limited; government speech or a permissible funding condition) rather than obsessing over the doctrinal box.

Perry Education Ass'n v. Perry Local Educators' Ass'n, 460 U.S. 37 (1983)

5-4, White, J. Brennan, Marshall, Powell, and Stevens dissented. Most often quoted for its description of the forum categories.

Rule: A school district's interoffice mail system is a **nonpublic forum**. Giving the elected exclusive bargaining union access while denying a rival union is reasonable and based on **status, not viewpoint**. "Implicit in the concept of the nonpublic forum is the right to make distinctions in access on the basis of subject matter and speaker identity."

Facts: The Perry Township schools' internal mail system carried official messages, teachers' personal messages, and, with principals' permission, messages from groups like parochial schools, church groups, YMCAs, and Cub Scouts. PEA won an election as exclusive bargaining representative; its contract gave it access to teacher mailboxes and denied access to other unions. Rival PLEA sued. **Held:** no First Amendment violation (reversing the Seventh Circuit).

- **Not a public forum:** the system wasn't open to the general public; permission came from individual principals. **Selective access** doesn't create a public forum (*Greer v. Spock*: occasional civilian speakers at Fort Dix didn't open the base).

- **Even if a limited forum** was created by admitting Cub Scouts and YMCAs, access would extend only to entities "of similar character" (Girl Scouts, boys' clubs), not a group concerned with teachers' employment terms.
- **Prior equal access:** "it is not the forum, but PLEA itself, which has changed." PEA's official role as bargaining agent justified its special access.
- **Reasonable:** PLEA still had bulletin boards, meeting rooms, the PA system with approval, word of mouth, phone, and U.S. mail, and equal access during election contests.

International Society for Krishna Consciousness, Inc. (ISKCON) v. Lee, 505 U.S. 672 (1992), and *Lee v. ISKCON*, 505 U.S. 830 (1992)

Airports are nonpublic forums (5-4); solicitation ban upheld (6-3, Rehnquist, C.J.); leafletting ban struck (5-4, O'Connor, J.).

Rule: Airport terminals are **nonpublic forums**. A ban on repetitive in-terminal **solicitation of money is reasonable**, but a ban on **distributing literature is not**. Reasonableness is judged in light of the forum's purpose and all the circumstances.

Facts: ISKCON members perform sankirtan: going into public places, distributing religious literature, and soliciting funds. The Port Authority banned continuous or repetitive sale or distribution of merchandise or literature, and solicitation of funds, inside the JFK, La Guardia, and Newark terminals, but allowed them on outside sidewalks.

- **Government as proprietor:** when managing its internal operations rather than acting as lawmaker, its actions don't get heightened review.
- **Not a public forum:** airports haven't historically been open for speech, and the Port Authority hasn't intentionally opened them; their purpose is facilitating air travel.
- **Solicitation ban reasonable:** solicitation disrupts the flow of hurried travelers with luggage (a missed flight costs hours), and face-to-face solicitation risks duress against the vulnerable (people with children or disabilities) who are too rushed to complain. Pedestrian congestion is a major problem, and if ISKCON gets access, so must others.
- **O'Connor, J. (leafletting):** the airport is also "a shopping mall," so ask whether restrictions are reasonably related to that multipurpose environment. Leaflets don't require the recipient to stop, and the Port Authority offered no justification for banning leafletting alone. It may use content-neutral TPM rules instead, like confining sankirtan to an uncongested area near the JFK chapel.

Rosenberger v. Rector & Visitors of the University of Virginia, 515 U.S. 819 (1995)

5-4, Kennedy, J. Souter, Stevens, Ginsburg, and Breyer dissented.

Rule: A university's student activity fund is a **limited public forum** ("more in a metaphysical than in a spatial or geographic sense"). Once it opens a limited forum, the state may not exclude speech unreasonably in light of the forum's purpose, nor discriminate based on **viewpoint**. Denying printing costs to a student paper with a Christian perspective violates the Free Speech Clause.

Facts: UVA's Student Activities Fund, paid for by a mandatory $14-per-semester student fee, paid outside printers for student groups (CIOs) whose activities relate to the university's educational purpose, including student news and opinion media. It excluded "religious activities," defined as anything that "primarily

promotes or manifests a particular belief in or about a deity or an ultimate reality." Wide Awake Productions published *Wide Awake: A Christian Perspective at the University of Virginia* and was denied $5,862 for printing. **Held:** the denial violated the Free Speech Clause.

- **Private speech, not the university's:** every CIO signs an agreement that it isn't the university's agent, isn't controlled by it, and that the university doesn't endorse its goals. In 1990-91, 118 of 135 applicant groups were funded, including 15 media groups.
- Having offered to pay printers for private speakers conveying their own messages, the university "may not silence the expression of selected viewpoints." The religious exclusion targeted a religious **perspective** on otherwise eligible topics.
- *Rosenberger* also supplied the line later cited in funding cases: when the government funds private speakers to convey its own message, it may keep that message from being garbled.

Walker v. Texas Division, Sons of Confederate Veterans, 576 U.S. 200 (2015) (revisited)

5-4, Breyer, J. Full case in Ch. 10.

Rule: When the government speaks for itself, **forum analysis doesn't apply**. A government creates a public forum only by **intentionally opening** a nontraditional forum for public discourse, not by inaction or permitting limited discourse. Texas specialty plates aren't a traditional, designated, or limited public forum.

- **Why no forum:** the state has final authority over each design, owns each design, and plates have traditionally carried government speech, serve as government ID, and bear the state's name. Private participation in designing a message doesn't make the government "a mere forum-provider."

Synthesis: Funding and Forum Cases

Case	Category	Result and key reason
Rust (1991)	Funding (government message)	Upheld; defines program; grantee free outside it
Velazquez (2001)	Funding (private speech)	Struck; lawyers speak for clients; insulates laws from challenge
USAID I (2013)	Funding (condition beyond program)	Struck; compels belief that can't be confined to program
USAID II (2020)	Funding (foreign affiliates)	No First Amendment rights abroad
Perry (1983)	Nonpublic forum (school mail)	Upheld; reasonable, status-based
ISKCON (1992)	Nonpublic forum (airports)	Solicitation ban upheld; leafletting ban struck
Rosenberger (1995)	Limited public forum (student fund)	Struck; viewpoint discrimination against religious perspective
Walker (2015)	No forum; government speech	Upheld; state's own message
Shurtleff (2022)	Designated public forum (flagpole)	Struck; private speech, viewpoint-based denial

Stretch Exercises: Grant Conditions and Bus Ads

	Analysis
#1 Opioid grants	HHS grants to nonprofits to reduce opioid addiction require recipients to refrain from advocating legalization of heroin. **For HHS:** like *Rust*, it defines the program's message, and advocating legalization would garble an anti-addiction message. **Against:** if it bars advocacy with the grantee's **own** money and on its own time, it reaches outside the program like *USAID I*. Likely outcome turns on whether the condition is limited to the funded program or reaches the organization as a whole.
#2 DEI education grants	Department of Education grants to teach teens about the benefits of a diverse workforce require recipients to refrain from criticizing workforce DEI initiatives. **For the government:** it is paying for its own message about diversity and needn't fund the other side (*Rust*). **Against:** a blanket ban on criticism reaches beyond the funded curriculum and resembles *USAID I*'s demand that recipients adopt the government's view. It also sounds viewpoint-based. Compare the slides' example of NIH conditioning cancer grants on disavowing DEI programs: a condition unrelated to the program's subject is even harder to defend.
#3 Bus ads	A city allows commercial but not political ads on city buses. The ad space isn't a traditional public forum. The city will argue it is a **limited or nonpublic forum** whose purpose is revenue and a pleasant ride for a captive audience, and that excluding **all** political ads is a **reasonable, viewpoint-neutral** subject-matter line. Challengers will argue the city opened the space broadly to private messages (a designated forum, like *Shurtleff*), and that "political" is vague enough to invite viewpoint-based enforcement (compare *Thomas*'s concern with official discretion).

Chapter 12: Speech by Government Employees and Speech in Public Schools

Big picture: two more nonregulatory capacities: the government as **employer** and as **school administrator**. They overlap because public-school teachers are government employees (*Pickering* itself involved a teacher). Employees and public-school students have First Amendment rights, but more limited ones than the general public's. In both contexts the Court uses **balancing tests** that weigh the government's legitimate interests.

Why balancing here? When the government acts as **regulator**, the Court rejects ad hoc balancing (*Stevens* called a cost-benefit test for new unprotected categories "startling and dangerous") and prefers bright-line rules. But as employer or school administrator, the government often has legitimate reasons to restrict speech that are hard to catalog. The casebook suspects "there is no better alternative" to balancing.

Speech by Government Employees

Rule (the *Pickering* test, as refined by *Garcetti*): balance "the interests of the employee, as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs through its employees." **Step 1:** Did the employee speak **as a citizen on a matter of public concern**? If not (e.g., speaking pursuant to official duties), no First Amendment claim; the speech is effectively the government's, and it controls its message. **Step 2:** If so, did the government have an **adequate justification** for treating the employee differently from any other member of the public?

- ***Pickering v. Board of Education* (1968):** a teacher fired for a letter to the editor criticizing the school board's handling of the budget won. The letter was on a matter of public concern and didn't impede classroom performance or school operations. Teachers are "most likely to have informed and definite opinions" about school funding.
- **Adequate justifications (step 2):** the Court hasn't given a full list. Examples: speech that is **false** or discloses **confidential** information (though the government couldn't punish a member of the public for the same speech), efficiency and integrity in official duties, and discipline in public service. A stronger showing may be needed the more the speech involves public concern.

Garcetti v. Ceballos, 547 U.S. 410 (2006)

5-4, Kennedy, J. Stevens, Souter, Ginsburg, and Breyer dissented.

Rule: "When public employees make statements **pursuant to their official duties**, the employees are not speaking as citizens for First Amendment purposes, and the Constitution does not insulate their communications from employer discipline."

Facts: Ceballos, a deputy district attorney (calendar deputy), wrote an internal memo to supervisors concluding that a search-warrant affidavit contained serious misrepresentations and recommending how to handle the case. After heated exchanges, he suffered retaliation (the casebook says he was eventually fired) because supervisors disagreed. **Held:** no First Amendment violation.

- **Not dispositive:** that he spoke **inside the office** rather than publicly, and that the memo concerned the **subject matter** of his job. Some workplace and job-related expression is protected.

- **Controlling:** he wrote the memo as part of his duties, advising his supervisor on a pending case. "When he went to work and performed the tasks he was paid to perform," he acted as an employee, and supervisors may evaluate that work.
- **Values on both sides:** employees remain citizens, and the public benefits from their informed views. But the First Amendment doesn't "constitutionalize the employee grievance."

Lane v. Franks, 573 U.S. 228 (2014)

9-0, Sotomayor, J.

Rule: Truthful sworn testimony, compelled by subpoena, **outside the scope of an employee's ordinary job duties** is speech as a citizen, even if it concerns information learned on the job. "The critical question under *Garcetti* is whether the speech at issue is itself ordinarily within the scope of an employee's duties, not whether it merely concerns those duties."

Facts: Lane, a state-agency employee, testified under subpoena at criminal trials about corruption and misuse of state funds in a public program he worked in. Testifying wasn't part of his ordinary job. He was fired. **Held:** the firing violated the First Amendment (reversing the Eleventh Circuit, which read *Garcetti* "far too broadly").

- **Step 1, citizen speech on public concern:** unlike *Garcetti*'s internal memo, the testimony wasn't part of his paid tasks. Corruption and misuse of public funds are obviously of significant public concern.
- **Why employee speech has special value:** employees "are often in the best position to know what ails the agencies for which they work." Federal corruption prosecutions (1,000+ a year) depend on government employees' testimony; a contrary rule would force witnesses to choose between truthful testimony and their jobs.
- **Step 2, the employer's side "entirely empty":** no evidence the testimony was false, or that Lane unnecessarily disclosed sensitive, confidential, or privileged information.

Speech in Public Schools

Principles (no single test): students do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate" (*Tinker*), but the First Amendment applies "in light of the special characteristics of the school environment" (*Hazelwood*). These rules cover **public** schools (including public universities), not private ones.

Special characteristic of schools	What it justifies
In loco parentis	For minors (K-12), administrators stand in for parents when parents can't protect, guide, and discipline
Preventing disruption	Speech that "materially disrupts classwork or involves substantial disorder" (*Tinker*)
Protecting other students	Speech that invades "the rights of others" (e.g., bullying)
School imprimatur	Speech others may reasonably perceive as "bearing the imprimatur of the school" (school newspaper, assembly, play) (*Hazelwood*)

- **Categories the Court has recognized (per *Mahanoy*):** (1) indecent, lewd, or vulgar speech at a school assembly; (2) speech promoting illegal drug use on a class trip; (3) speech bearing the school's imprimatur; plus *Tinker*'s substantial-disruption and rights-of-others standard.

Tinker v. Des Moines Independent Community School District, 393 U.S. 503 (1969)

7-2, Fortas, J. Black and Harlan dissented.

Rule: Schools may restrict student expression only if they can show it would **materially and substantially interfere** with school work and discipline or **invade the rights of others**. "Undifferentiated fear or apprehension of disturbance is not enough." Officials may not suppress an opinion merely to avoid "the discomfort and unpleasantness that always accompany an unpopular viewpoint."

Facts: In December 1965, John Tinker (15), Christopher Eckhardt (16), and Mary Beth Tinker (13) wore black armbands to school to protest the Vietnam War and support a truce. Principals, learning of the plan, adopted a policy suspending any student who wouldn't remove an armband. They were suspended until after New Year's. **Held:** the suspensions violated the First Amendment.

- **Symbolic speech** "closely akin to 'pure speech'": a silent, passive expression of opinion with no disorder, not about hair, skirts, or aggressive conduct.
- **No evidence** of interference with schoolwork or other students' rights, and nothing that could reasonably forecast substantial disruption. The armbands caused discussion outside class, not disorder.
- Any deviating word "may start an argument or cause a disturbance," but the Constitution says we must take that risk (*Terminiello*). This "hazardous freedom" is the basis of national strength.
- "State-operated schools may not be enclaves of totalitarianism." Students aren't "closed-circuit recipients of only that which the State chooses to communicate."

Hazelwood School District v. Kuhlmeier, 484 U.S. 260 (1988)

6-3, White, J. Brennan, Marshall, and Blackmun dissented.

Rule: Educators may exercise editorial control over the style and content of student speech in **school-sponsored expressive activities** "so long as their actions are **reasonably related to legitimate pedagogical concerns**." *Tinker* asks whether a school must **tolerate** personal expression; *Hazelwood* asks whether it must **affirmatively promote** student speech that bears its imprimatur.

Facts: *Spectrum*, the Hazelwood East newspaper, was written and edited by the Journalism II class for grades and credit; the teacher controlled nearly everything, and the principal reviewed each issue. More than 4,500 copies went to students, staff, and the community. The principal deleted two pages, including articles about students' pregnancies. **Held:** no First Amendment violation.

- **Curricular activities:** school-sponsored publications, plays, and other activities that students, parents, and the public might reasonably see as the school's, supervised by faculty and designed to teach. The school may make sure students learn the lesson, protect immature audiences, and avoid having individual views attributed to it.
- **What the school may refuse to sponsor:** speech that is ungrammatical, poorly written, inadequately researched, biased, vulgar, or unsuitable for immature audiences; speech that might seem to advocate drug or alcohol use or irresponsible sex; or anything associating the school with a non-neutral position on political controversy.

- **Prior case:** a student could be disciplined for a sexually explicit (not obscene) speech at a school assembly, because the school could disassociate itself from vulgarity [the casebook doesn't name it: *Bethel School District v. Fraser*, 1986].
- **Applied:** the principal reasonably feared the pregnant students could be identified, that boyfriends and parents discussed in the articles hadn't consented or been able to respond, and that frank talk about sexual histories and birth control was inappropriate for 14-year-old freshmen and their younger siblings.
- **Footnote 7:** the Court didn't decide whether the same deference applies at colleges and universities.
- **Casebook aside:** private schools aren't bound by the First Amendment, but many protect student speech. In 1989 Georgetown forced *The Hoya* to cancel an issue with an abortion-rights rally ad; *The Hoya* and *The Voice* (edited by Professor Klein's husband Craig) struck, and Georgetown backed down.

Mahanoy Area School District v. B.L., 594 U.S. 180 (2021)

8-1, Breyer, J. Alito (with Gorsuch) concurred; Thomas, J., dissented.

Rule: Schools have **less latitude** to regulate **off-campus** speech, but their special interests don't always disappear off campus. No bright line between on- and off-campus speech; future cases will decide where, when, and how location matters.

Facts: After failing to make varsity cheerleading (while an incoming freshman did), B.L., a high school student, posted a Snapchat story on a weekend from the Cocoa Hut convenience store, visible to her ~250 friends for 24 hours: a photo with middle fingers raised captioned "Fuck school fuck softball fuck cheer fuck everything," and a second post complaining about JV. Screenshots spread; some cheerleaders were "visibly upset," and it came up in an Algebra class. Coaches suspended her from JV cheer for a year for profanity connected to an extracurricular activity. **Held:** the suspension violated the First Amendment.

- **Off-campus interests that may remain significant:** serious or severe bullying or harassment targeting individuals; threats aimed at teachers or students; failure to follow rules on lessons, papers, computers, or online school activities; and breaches of school security devices.
- **Three features of off-campus speech that reduce school leeway:** (1) the school rarely stands **in loco parentis**; off campus is normally parents' responsibility. (2) Regulating off-campus **and** on-campus speech covers a student's whole 24-hour day, so courts should be more skeptical; for political or religious speech, the school has a "heavy burden." (3) Schools themselves have an interest in protecting **unpopular** expression; they are "the nurseries of democracy."
- **Applied:** her speech was criticism of a community she belonged to, not fighting words (*Chaplinsky*) or obscene (*Cohen*). It was posted off campus, after hours, on a personal phone to private friends, without naming the school or targeting anyone.
- **School's interests fail:** (1) teaching good manners is weak off campus, with no evidence of any general effort to police off-campus vulgarity; (2) no "substantial disruption": 5-10 minutes of an Algebra class for a couple of days and some upset teammates; (3) team morale: only generalized "negativity," which is "undifferentiated fear."
- "Sometimes it is necessary to protect the superfluous in order to preserve the necessary."

Synthesis: Employees and Students

Case	Speech	Result and key reason
Pickering (1968)	Teacher's letter to editor on school budget	Protected; citizen speech on public concern; no disruption
Garcetti (2006)	Prosecutor's internal memo	Unprotected; pursuant to official duties
Lane (2014)	Subpoenaed trial testimony on corruption	Protected; outside ordinary duties; employer's side empty
Tinker (1969)	Black armbands	Protected; no substantial disruption
Hazelwood (1988)	School newspaper articles	Restriction OK; school-sponsored, legitimate pedagogical concerns
Mahanoy (2021)	Off-campus vulgar Snapchat	Protected; reduced off-campus leeway; no disruption

Stretch Exercises: Campus Protests and School Library Books

	Analysis
Campus protests	At a public university, students (1) silently hold signs saying "Stop Israel's genocide in Gaza" outside a building; (2) chant the slogan; (3) chant "Zionists deserve to die"; (4) silently hold that sign in a common space inside the building. **Framework:** university students are adults, so *in loco parentis* carries little weight, and outdoor campus spaces may resemble public forums. Silent signs (1) look like *Tinker*'s armbands: protected absent substantial disruption. Chanting (2) adds noise, which content-neutral TPM rules may limit if they leave alternatives. "Zionists deserve to die" (3) raises true threats (*Counterman*), incitement (*Brandenburg*), and invasion of other students' rights. The indoor sign (4) removes the noise but moves the speech into a space with stronger claims to protect other students and the educational environment.
***Crookshanks v. Elizabeth School District* (D. Colo. 2025)**	The district permanently removed 19 books (including *The Kite Runner* and *The Bluest Eye*) from school libraries. The court granted a preliminary injunction: students have a right to receive information; library curation isn't **government speech** (no one thinks a library endorses *Mein Kampf*; accord 8th Cir. 2024 and N.D. Fla. 2024); a library book doesn't bear the school's **imprimatur** the way a journalism-class newspaper does; and removal to promote the board's "conservative values" based on viewpoints about race, sexual orientation, and gender identity isn't "reasonably related to legitimate pedagogical concerns" (*Hazelwood*).
Arguing for the district	Library selection is inherently curatorial and pedagogical; a school chooses what to offer minors and is closer to *Hazelwood* than *Tinker*. Libraries are part of the educational program, and age-appropriateness is a legitimate concern. Use *Mahmoud* (Ch. 1): if the Montgomery County board could choose to integrate LGBTQ+-friendly books into the curriculum, a board should equally be able to choose which books to remove. (The slides ask whether you're convinced by *Crookshanks*.)

Chapter 13: Speech Involving Social Media and Speech Involving Elections

Big picture: two special categories of speech, rather than more government capacities. **Social media** cases add a third actor: earlier cases had two (the government and the private speaker), but social media cases may involve (1) the **individual user**, (2) the **private platform** hosting the speech (Facebook, YouTube), and (3) the **government**. Users and platforms both have First Amendment rights against the government. Because the technology is new and evolving, the Court has been careful not to announce sweeping rules. **Elections** law is complicated; two cases give a feel for how First Amendment issues arise.

Social media checklist. (1) Identify the three actors and whose rights are at stake. (2) **Government restricting a user's access**: *Packingham* (the Internet is a vital forum; overbroad bans fail even intermediate scrutiny). (3) **Official blocking a user**: is it state action? *Lindke*: actual authority to speak for the state + purporting to use it, post by post. (4) **Government regulating platforms' content moderation**: *NetChoice* (curation is protected editorial judgment; "rebalancing" the speech market isn't a valid interest). (5) **Government pressuring platforms**: coercion violates the First Amendment (*Vullo*), but users must show the government, not the platform's own choice, caused the takedown (*Murthy*). (6) Users have **no** First Amendment rights against private platforms.

Speech Involving Social Media

Packingham v. North Carolina, 582 U.S. 98 (2017)

8-0 on the bottom line, Kennedy, J. (Gorsuch, J., recused). Alito, J., with Roberts and Thomas, concurred in the judgment.

Rule: Internet access is protected by the First Amendment because it is so important for speech. Cyberspace, especially social media, is today's most important place for the exchange of views, akin to streets and parks. A law broadly barring registered sex offenders from social media fails even **intermediate scrutiny**. The Court **declined to decide** what standard applies to restrictions on Internet access.

Facts: North Carolina made it a felony for a registered sex offender to access a commercial social networking site that he knows permits minors to become members. About 20,000 people were covered and over 1,000 prosecuted. Lester Packingham, who at 21 had sex with a 13-year-old and registered as a sex offender, posted on Facebook after a traffic ticket was dismissed: "Man God is Good! ... Praise be to GOD, WOW! Thanks JESUS!" He was convicted, though he never contacted a minor or did anything illicit online.
Held: the law violates the First Amendment.

- **"Vast democratic forums":** seven in ten American adults use social media; Facebook had 1.79 billion users. People use it to debate religion and politics, find jobs, and petition elected officials (all 50 governors and nearly every member of Congress have accounts).
- **Caution:** the Internet is "so new, so protean, and so far reaching" that what courts say today may be obsolete tomorrow, so the Court must be careful before suggesting it gives "scant protection" to access.
- **Tailoring fails:** protecting children from sexual abuse is compelling, and states may pass specific, narrowly tailored laws barring conduct that often presages a crime (contacting a minor, gathering information about a minor online). But this law "with one broad stroke" cuts off the principal sources for news, job ads, and speaking and listening in "the modern public square."

Lindke v. Freed, 144 S. Ct. 746 (2024)

9-0, Barrett, J. Remanded to apply the new framework.

Rule (state action): A public official's social-media activity is attributable to the state only if the official (1) **possessed actual authority** to speak on the state's behalf on that matter, and (2) **purported to exercise that authority** when speaking on social media. Appearance and function matter only at step 2 and can't make up for a lack of authority at step 1.

Facts: James Freed converted his personal Facebook profile into a public "page" (category: "public figure") before becoming city manager of Port Huron, Michigan. He then added a photo with a city lapel pin, his title, and the city's website and email. He posted mostly about family (his daughter, his dog Winston, Bible verses) but also about city work (leaf pickup, a housing survey, the fire chief's press releases, COVID-19 policies). Kevin Lindke criticized the city's pandemic response in comments; Freed deleted them and then blocked him. Lindke sued, calling the page a public forum and the deletions viewpoint discrimination. **Held:** vacated and remanded.

- **Why it matters:** the First Amendment binds only the government. If Freed acted privately, he was exercising his **own** First Amendment rights (editorial control over his own page), not violating Lindke's. Officials don't relinquish their rights (*Garcetti*; *Lane*).
- **Step 1, actual authority:** it must be real, "not a mirage," and cover the matter in question (if public health isn't in the city manager's portfolio, a post on restaurant health violations isn't state action). It can come from statutes, ordinances, regulations, or a well-settled **custom and usage**. Misusing real power is still state action, but one must have the power first.
- **Step 2, purporting to use it:** context matters. A school board president announcing a policy change at a board meeting acts officially; saying the same thing at a backyard barbecue doesn't. A "personal page" label or disclaimer earns a heavy (rebuttable) presumption that posts are personal; a "City of Port Huron" page or an account passed between officeholders is official.
- **Mixed-use pages:** classify post by post, focusing on **content and function**. A mayor suspending parking rules "pursuant to Municipal Ordinance 22.1" only on Facebook is plainly official; merely sharing a link to the city's announcement is likely private. Using government staff to post points toward official.
- **Technology matters:** deleting a comment implicates only that post, but **blocking** is page-wide, so it implicates every post Lindke wanted to comment on. Officials who mix personal and official posts expose themselves to more liability.

Moody v. NetChoice, LLC, 603 U.S. 707 (2024)

9-0 on the bottom line, Kagan, J. Jackson joined in part; Thomas, Alito, and Gorsuch concurred in the judgment.

Rule: When platforms curate their feeds (deciding what third-party speech to display and how, by removing, ranking, and labeling content), they engage in **expressive activity protected by the First Amendment**, like newspapers and TV stations exercising editorial judgment. The government may not interfere with that curation to advance its own vision of "ideological balance." The Court remanded on the demanding **facial-challenge** standard and left algorithms that simply follow user preferences open (footnote 7).

Facts: 2021 Florida and Texas laws restricted large platforms' content moderation and required individualized explanations when posts were removed or altered. Texas barred platforms from "censoring" (blocking, removing, demonetizing, de-boosting, etc.) a user's expression based on its viewpoint. NetChoice,

a trade association including Facebook and YouTube, brought facial challenges. The Eleventh Circuit upheld an injunction against Florida's law; the Fifth Circuit reversed one against Texas's. **Held:** both vacated and remanded, with guidance that the Fifth Circuit's approach was wrong.

- **Precedents on editorial choice:** *Miami Herald v. Tornillo* (1974) (no forced right of reply in a newspaper); *PG&E* (1986) (a utility can't be forced to include a consumer group's views in its newsletter); *Turner I* (1994) (cable operators' channel selection is expressive; must-carry was later upheld in *Turner II* to save local broadcasting); *Hurley* (1995) (parade organizers can't be forced to include a group's message).
- **Principle:** ordering a party to host others' speech implicates the First Amendment if, though only if, the party is engaged in its own expressive activity that the mandate would alter. Presenting a **curated compilation** of others' speech counts.
- **Applied to Texas:** platforms couldn't disfavor posts supporting Nazi ideology or terrorism, espousing racism or anti-Semitism, glorifying rape, encouraging teen suicide, discouraging vaccines, or advancing false claims of election fraud. That "profoundly alters" their choices about which views to convey.
- **Not a defense:** that platforms carry most posts (excluding select categories is an editorial choice too), or that no one would attribute a single post to the platform (protection never hinged on misattribution risk).
- **Interest fails even intermediate scrutiny (*O'Brien*):** Texas wanted to correct the mix of speech (the Governor spoke of a "dangerous movement" to "silence" conservatives). That interest is related to suppressing expression and isn't valid. Few dangers are greater than letting government change private speech "to achieve its own conception of speech nirvana."
- **Discussion:** given platforms' power over billions of users' speech, should government be able to regulate "private censorship," or is second-guessing private editorial choices too dangerous?

Murthy v. Missouri, 603 U.S. 43 (2024)

Described in the casebook commentary; not excerpted.

Rule: Users have no First Amendment rights against platforms' own moderation. To sue the **government**, a user must show that government coercion, not the platform's independent editorial decision, caused the content to be taken down or obscured.

Facts: Social-media users alleged Biden Administration officials pressured platforms into deleting posts (e.g., questioning COVID-19 vaccine efficacy). **Held:** no standing; the platforms had been removing such posts independently, even before the alleged pressure.

Speech Involving Elections

Arkansas Educational Television Commission v. Forbes, 523 U.S. 666 (1998)

6-3, Kennedy, J. Stevens, Souter, and Ginsburg dissented, worrying the staff had too much discretion, but not disputing the reasoning below.

Rule: Public and private broadcasters generally have broad editorial discretion not subject to forum analysis. A **candidate debate** is the narrow exception: it is a **nonpublic forum**, so a state-owned station may exclude a candidate only if the exclusion is **viewpoint neutral and reasonable**. Excluding a candidate for lack of public support passes.

Facts: Arkansas's state-owned public TV network excluded independent candidate Ralph Forbes from a televised debate for a congressional seat because he had little support in the polls. **Held:** no First Amendment violation.

- **Why debates differ:** (1) by design, a debate is a forum for the candidates' political speech, with views implicitly theirs, not the broadcaster's (unlike a talk show host); (2) debates are of "exceptional significance" in elections, often the only time public attention focuses in depth on the race.
- **Nonpublic, not designated:** a designated forum requires general access for a **class** of speakers. AETC made candidate-by-candidate decisions among those running for the seat (selective access).
- **Opening debates to all would mean less speech:** 19+ candidates were on some state ballots in recent presidential elections; after the lower court's ruling, Nebraska's public network canceled a 1996 Senate debate.
- **Reasonable and viewpoint neutral:** the jury found no objection to Forbes's views. "His own objective lack of support, not his platform, was the criterion." An unconventional candidate could have broad support; a conventional one might have little. AETC excluded him "because the voters lacked interest in his candidacy, not because AETC itself did."

Citizens United v. Federal Election Commission, 558 U.S. 310 (2010)

5-4 on expenditures, Kennedy, J. (with Roberts, Scalia, Alito, and Thomas). A different majority (including Stevens, Ginsburg, Breyer, and Sotomayor) upheld disclosure; the casebook calls that vote 5-4, but the reported vote was 8-1, with Thomas dissenting. Stevens, J., dissented on expenditures, joined by Ginsburg, Breyer, and Sotomayor.

Rule: The government may not ban **independent expenditures** by corporations (including nonprofits) from general treasury funds for political speech. Laws burdening political speech get **strict scrutiny**; the only sufficient interest is preventing **quid pro quo corruption** or its appearance, which justifies limits on **direct contributions** but not independent expenditures. **Disclaimer and disclosure** requirements survive "exacting scrutiny" (a substantial relation to a sufficiently important interest, such as informing voters).

Facts: The Bipartisan Campaign Reform Act of 2002 (BCRA) barred corporations from using general treasury funds for express advocacy or for "electioneering communications" naming a federal candidate within 30 days of a primary or 60 days of a general election. Corporations could speak only through PACs funded by shareholder and employee donations. Citizens United, a nonprofit corporation, wanted to air *Hillary*, a film critical of Hillary Clinton, and ads for it. **Held:** the expenditure ban is unconstitutional; *Austin* (1990) and part of *McConnell* (2003) are overruled.

- **"Classic examples of censorship":** the law would make it a felony for the Sierra Club, the NRA, or the ACLU to urge votes for or against a candidate in the pre-election window.
- **PACs aren't a substitute:** a PAC is a separate association, expensive, and heavily regulated; fewer than 2,000 of millions of corporations have one.
- ***Buckley v. Valeo* (1976):** upheld limits on direct contributions (risk of quid pro quo) but struck limits on independent expenditures.
- ***Austin*'s "antidistortion" rationale rejected:** it would let government ban political speech just because the speaker took the corporate form, muffling "the voices that best represent the most significant segments of the economy."

- **Disclosure upheld:** ads must state who is responsible and that no candidate authorized them; anyone spending over $10,000 a year on electioneering communications must file with the FEC. Disclosure imposes no ceiling on speech; as-applied challenges remain if disclosure would expose contributors to threats, harassment, or reprisals.
- **Stevens, J., dissenting:** the dispute is about **how**, not whether, Citizens United could speak (through its multimillion-dollar PAC, or outside the 30-day window). Corporations can't vote or run for office, and Congress has limited corporate election spending since the Tillman Act of 1907. Corruption runs along a spectrum: "the difference between selling a vote and selling access is a matter of degree, not kind," and politicians know who spends on their behalf.
- **Aftermath:** *SpeechNow.org v. FEC* (D.C. Cir. 2010) (en banc) barred caps on contributions to independent-expenditure committees ("super PACs"). Outside spending in federal elections rose from $574 million in 2008 to nearly $4.5 billion in 2024.

Synthesis: Social Media and Elections

Case	Actors	Holding
Packingham (2017)	Government vs. user	Internet access protected; overbroad ban fails; standard undecided
Lindke (2024)	Official vs. user	State action only with actual authority + purporting to use it
NetChoice (2024)	Government vs. platform	Content moderation is protected editorial judgment
Murthy (2024)	User vs. government (via platform)	Must show government coercion caused takedown
Vullo (2024, Ch. 10)	Government vs. third parties	Coercing others to suppress speech violates the First Amendment
AETC v. Forbes (1998)	State TV vs. candidate	Debate is nonpublic forum; reasonable, viewpoint-neutral exclusion OK
Citizens United (2010)	Government vs. corporate speakers	Independent-expenditure ban struck; disclosure upheld

Stretch Exercise: Influencer AI-Filter Disclosures

	Analysis
Issue	A state requires social media influencers with over one million followers to disclose when they use filters or AI to alter their appearance in **paid** posts promoting beauty products. Influencers say it compels speech and singles out a category of speakers; the state says it requires factual disclosures to keep consumers, especially teenagers, from being misled.
Questions	What level of scrutiny applies? Does it matter that the rule covers only paid endorsements?

	Analysis
Analysis	**For the state:** paid promotions are **commercial speech**, and the disclosure is purely factual and uncontroversial (whether the image was altered) and about the advertised product's effect, so *Zauderer* applies (Ch. 8). Preventing deception is the classic substantial interest (*Zauderer*; *Milavetz*), and a short label is unlikely to "drown out" the ad (*NIFLA*; *CTIA*). Limiting it to paid endorsements helps keep it commercial. **For the influencers:** the million-follower threshold is **speaker-based** (*Sorrell*), so it is underinclusive if the goal is preventing deception; personal posts mixed with promotion may be noncommercial; and the state must show the harm is real, not "purely hypothetical" (*NIFLA*).